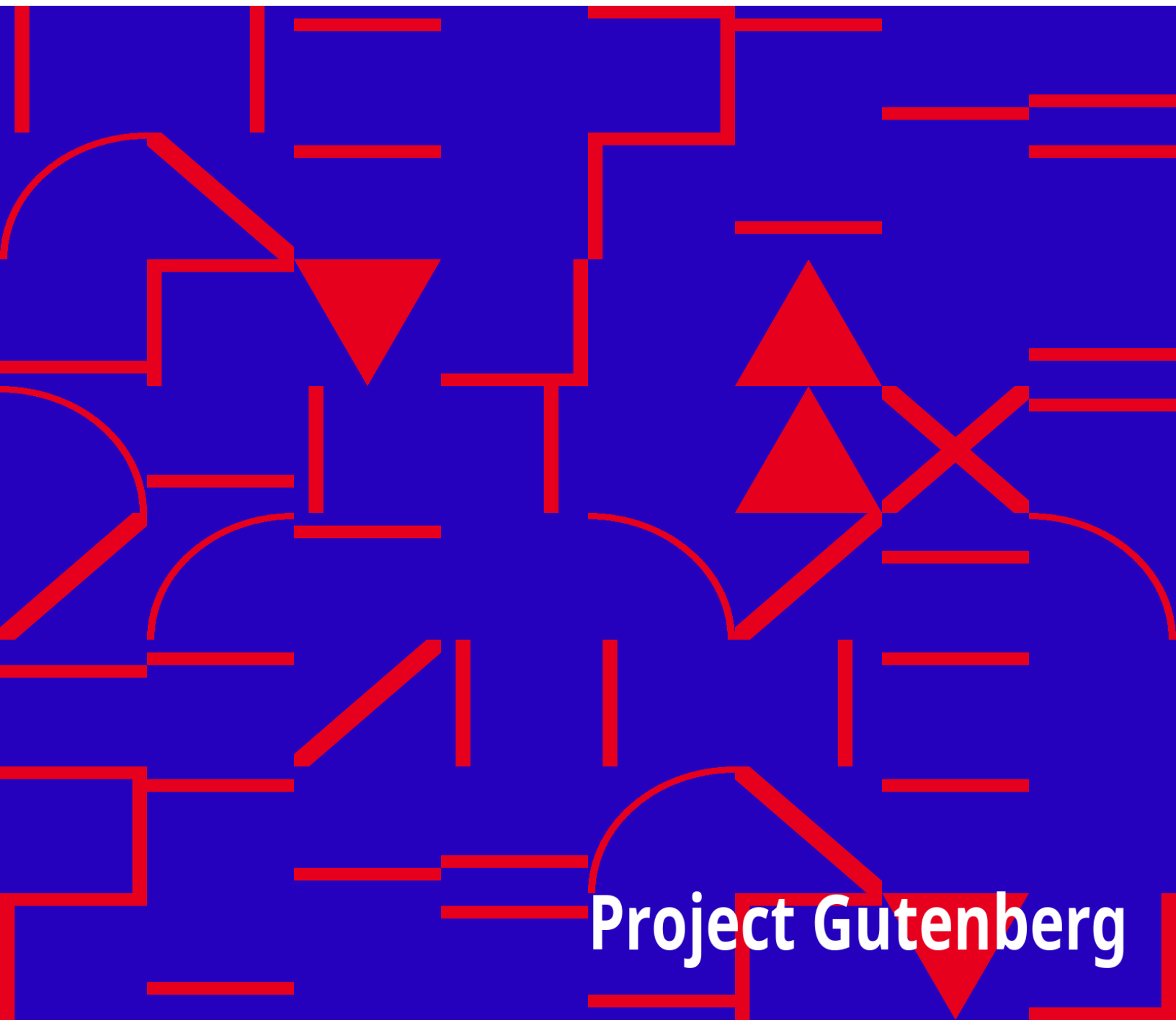


The Perfume of Eros: A Fifth Avenue Incident

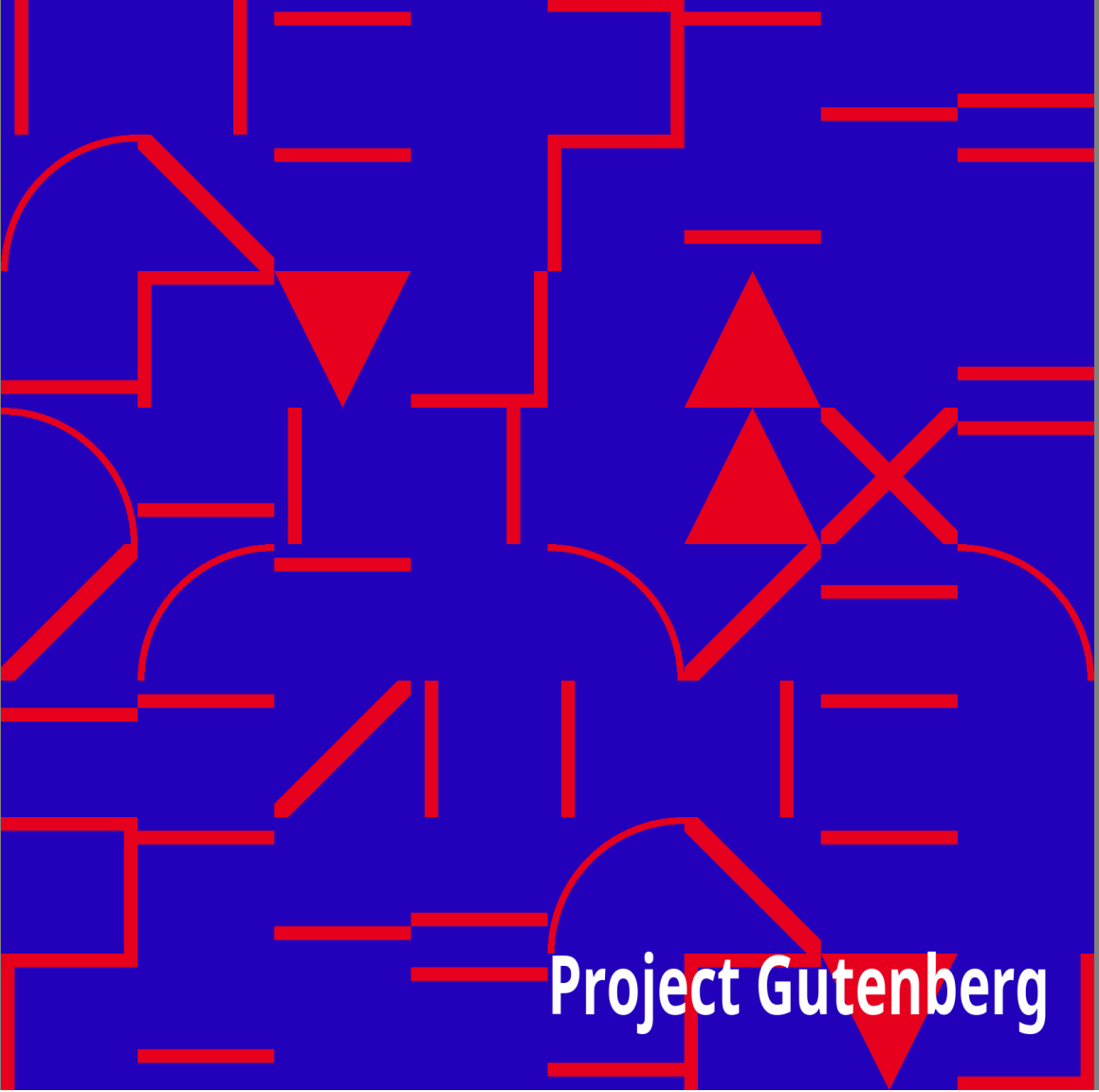
Edgar Saltus

The background of the lower half of the image is a solid blue field. Overlaid on this is a complex, abstract pattern of red lines and shapes. The pattern includes various geometric elements: straight horizontal and vertical lines of varying lengths, diagonal lines, semi-circular arcs, and solid red triangles pointing in different directions. Some of these shapes are nested or intersected by the lines, creating a layered, architectural feel. The overall effect is a vibrant, modernist-style decorative background.

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The Perfume of Eros: A Fifth Avenue Incident

Edgar Saltus



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*** START OF THE PROJECT GUTENBERG EBOOK THE PERFUME
OF EROS: A FIFTH AVENUE INCIDENT ***

THE PERFUME OF EROS

By Mr Saltus

IMPERIAL PURPLE
THE POMPS OF SATAN
MARY MAGDALEN
A TRANSACTION IN HEARTS
THE PHILOSOPHY OF DISENCHANTMENT
THE PACE THAT KILLS
THE ANATOMY OF NEGATION
PURPLE AND FINE WOMEN
MR. INCONT'S MISADVENTURE
THE TRUTH ABOUT TRISTOEM VARICK
LOVE AND LORE
THE STORY WITHOUT A NAME
EDEN

In Preparation

SCAFFOLDS AND ALTARS

The

Perfume of Eros

A FIFTH AVENUE INCIDENT

By
EDGAR SALTUS

New York

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1905

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THE FACTS IN THE CASE

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THE PERFUME OF EROS

CHAPTER I

A MAN OF FASHION

“**R**OYAL," said the man's mother that evening, "are you still thinking of Fanny Price?"

It was in Gramercy Park. As you may or may not know, Gramercy Park is the least noisy spot in the metropolitan Bedlam. Without being unreasonably aristocratic it is sedate and what agents call exclusive.

The park itself is essentially that. Its design is rather English. The use is restricted to adjoining residents. About it is a fence of high iron. Within are trees, paths, grasses, benches, great vases and a fountain. But none of the usual loungers, none of the leprous men, rancid women, and epileptic children that swarm in other New York squares. Yet these squares are open to all. To enter this park you must have a key. By day it is a playground. Nurse-maids come there with little boys and girls, the subdued, undemonstrative, beautifully dressed children of the rich. At night it is empty as a vacant bier.

In a house that fronted the north side Royal Loftus lived with his mother, a proud, arrogant woman socially known to all, but who socially knew but few. Behind her, in the shade of the family tree, was her dead lord, Royal's father and, more impressively still, the latter's relatives, the entire Loftus contingent, a set of people super-respectable, supernally rich. She too was rich. She wore a wig, walked with a staff, spoke with a Mayfair intonation in a high-pitched voice, and, in the amplitudes of widowhood and wealth, entertained frequently but cared only for her son.

On this evening the two were seated together in a drawing-room that faced the park. The walls, after a fashion of long ago, were frescoed. The ceiling too was frescoed. The furniture belonged also to an earlier day. The modern note in the room was the absence of chandeliers and the appearance

of Royal Loftus, who, in a Paris shirt and London clothes, was contemplating his painted nails.

At his feet was an Ardebil rug which originally had cost a small fortune and now was worth a big one. In allusion to it a girl to whom he had handed out the usual "You don't care for me," had retorted, "Not care for you! Why, Royal, I worship the rug you tread on."

That girl was Fanny Price.

"No," he answered in reply to his mother's question. The answer was strangely truthful. Fanny Price had tantalized him greatly. Semi-continuously he had thought of her for a long time. But not matrimonially. To him matrimony meant always one woman more and usually one man less. He had no wish to dwindle. When he was fifty he might, perhaps, to make a finish, marry some girl who wanted to begin. But that unselfishness was remote. He was quite young; what is worse, he was abominably good-looking. Fancy Aramis in a Piccadilly coat. That was the way he looked. His features were chiseled. On his lip was a mustache so slight that it might have been made with a crayon. His hair was black. His eyes were blue. Where they were not blue they were white, very white. They were wonderful eyes. With them he had done a great deal of execution.

At the time they rather haunted a young woman who moved in another sphere and whose acquaintance he had made quite adventurously. The name of this young woman was Marie Durand. It was of the latter, not of Fanny Price, that he was thinking.

"No," he repeated. "But was it for Annandale that you asked her for tonight?"

"How perfectly absurd of you, Royal. Have you forgotten that he is in love with Sylvia? I asked her partly for you, partly for Orr."

"Is he coming too! Good Lord! it is going to be ghastly."

But at the side of the room a portière was being drawn and a servant announced:

"Miss Waldron."

With the charming manner of the thoroughbred New York girl a young woman entered. She was tall, willowy, with a face such as those one used to see in keepsakes—delightful things which now, like so many other delightful things, are seen no more.

As she approached Mrs. Loftus, who had risen to greet her, she made a little courtesy.

"Sylvia, this is so dear of you. And is your mother very well?"

Again the portière was drawn. A voice announced:

"Miss Price."

Then there appeared a girl adorably constructed—constructed, too, to be adored. She was slight and very fair. Her mouth resembled the red pulp of some flower of flesh. Her eyes were pools of purple, her hair a turban of gold.

Cannibalistically Loftus looked the delicious apparition up and down. He could have eaten it.

"Mr. Annandale," the voice announced.

A man, big and blond, with a cavalry mustache and an amiable, aimless air, strolled in.

"Mr. Melanchthon Orr."

On the heels of Annandale came a cousin of Miss Waldron, a lawyer by trade, a man with a bulldog face that was positively attractive.

There were more how-do-you-do's, the usual platitudes, interrupted by the opening of doors at the further end of the room, where a butler, a squad of lackeys behind him, disclosed himself in silent announcement of dinner.

After the general move which then ensued and hosts and guests were seated at table, Orr created an immediate diversion by calling to Fanny Price and telling her that shortly she was to marry.

"Yes," he continued, "and my cousin Sylvia is to marry also, though not so soon; but either Annandale or Royal will never marry at all."

Bombarded by sudden questions Orr gazed calmly about.

"How do I know? Miranda told me. Miranda the spook. She charged five dollars for the information. If you like to make it up to me, I shall not mind in the least. On the contrary. You see, Mrs. Loftus," Orr added, turning to his hostess, "I happened, when I went to her, to have your very kind invitation for this evening in my pocket, and, as she wanted something to psychometrize, I gave her that. She held it to her forehead and said, 'I see you in the house of an elegant lady'—that is you, Mrs. Loftus; yes, there is no doubt about it—and there are present two young ladies, one fair, one dark, and two gentlemen; one of the gentlemen will never marry, but the dark young lady will marry in two years and the fair young lady in one. Five dollars. Thank you. Next."

"Did she say nothing about me except that I am an 'elegant lady'?" Mrs. Loftus, with a pained laugh and a high voice, inquired.

"Did she say whom I am to marry?" Fanny Price asked, smiling, as she spoke, at Royal.

"But, Melanchthon, surely you do not believe in these things?" said Sylvia gravely.

"Of course he does not," Loftus exclaimed. "He does not believe in anything. Do you, Orr?"

"I believe in a great many things," the lawyer replied. "I have precisely three hundred and sixty-five beliefs—one for every day in the year."

"When the twenty-ninth of February comes around how do you manage then?" said Fanny.

"Yes," said Annandale, "and how about April first?"

Orr raised a finger. "Jest if you will. But beliefs are a great comfort, or would be among people like you who have none except in fashion, and there is the oddity of it, for belief in this sort of thing is very fashionable now, particularly in London. Yes, indeed, Lady Cloden—you remember her, she was Clara Hastings—well, she went to a spook in Tottenham Court Road, and the spook told her that she would have twins. Immediately she

had herself insured. In London, you know, you can be insured against anything. The twins appeared and she got £5,000. Belief in this sort of thing is therefore not merely fashionable but convenient."

In the ripple of laughter which followed the logic, Orr turned to Mrs. Loftus, Annandale to Miss Waldron, Loftus to Fanny Price.

"You take very kindly to snubbing, don't you?" said the latter.

"I?"

"Oh, pooh! The other day I saw Mr. Royal Loftus trying to scrape acquaintance with a young person in the street. I never laughed more in my life. She would not look at you. Is that sort of thing amusing? Why don't you take a girl of your size?"

Loftus looked into Fanny's eyes. "If you want to know, because you are all so deuced prim."

"Ah!" and Fanny made a tantalizing little face, showing, as she did so, the point of her tongue. "Now tell me, what makes you think so?"

Across the table Annandale was talking to Sylvia Waldron. His manner was rather earnest, but his utterance had become a trifle thick.

"Oh, Arthur," the girl at last interrupted him. "Don't drink any more. You have had five glasses of champagne already."

Heroically Annandale put his glass down. "Since you wish it, I won't. But it does not hurt me. I can stand anything."

"I am afraid it may grow on you."

Annandale laughed. "Grow on me," he repeated. "I like that. Why, I am cultivating it."

Miss Waldron laughed too. "Yes, but you know you must not. I won't let you." Then at once, with that tact which was part of her, she changed the subject. "Doesn't Fanny look well tonight?"

"Very. She is the prettiest girl in New York. But you are the best and the dearest. What is more, you are an angel."

"To you I want to try to be."

"Only," resumed Annandale with a spark of the wit which is born of champagne, "don't try to be a saint—it is a step backward."

"Yes, Mrs. Loftus," Orr was saying, "Miranda is fat, very fat. All mediums are. The fatter they are the more confidence you may have."

Then there was more small talk. Courses succeeded each other. Sweets came and went. Presently Mrs. Loftus looked circuitously about and slowly arose. When she and the girls had gone and the men were reseated Loftus turned to Orr.

"Did the spook say anything else?"

Orr was selecting a cigar from a cabinet on wheels which a servant trundled about. He chose and lighted one before he replied. Then he looked at Loftus.

"Yes, she told me that she saw—" Orr paused. The cigar had gone out. He lighted it again. "She told me that she saw death hereabouts."

Loftus was also lighting a cigar. "Then I too am a spook," he replied. "I foretold that you would say something ghastly."

"But, my dear fellow," Orr rejoined, "truth is always that. People fancy that it is made of lace and pearls like a girl on her wedding day. It is not that at all. It is just what you call it. It is ghastly. Read history. Any reliable work is but a succession of groans. The more reliable it is the more groans there will be."

Annandale, who had been helping himself to brandy, interrupted. "Talking of reading things, I saw somewhere that after some dinner or other, when the women had gone, a chap began on a rather—well, don't you know, a sort of barnyard story and the host, who could not quite stomach it, said: 'Suppose we continue the conversation in the drawing-room?' So, Royal, what do you say? If Orr is going to shock us, suppose we do."

Loftus with a painted finger-tip flipped the ashes from his cigar.

"I fear that I have lost the ability to be shocked, but not the ability to be bored."

Yet presently, after another cigar and conscious perhaps that Fanny Price, though often exasperating, never bored, he returned with his guests to the drawing-room.

CHAPTER II

THE POCKET VENUS

"**H**OW do you like my hat?" said Fanny to Sylvia. Since the dinner a week had gone. The two girls were in Irving Place.

Irving Place is south of Gramercy Park. To the west are the multiple atrocities of Union Square, to the east are the nameless shames of Third avenue. Between the two Irving Place lies, a survival of the peace of old New York. At the lower end are the encroaching menaces of trade, but at the upper end, from which you enter Gramercy Park, there is a quiet, pervasive and almost provincial. It was here that Sylvia Waldron lived.

People take a house for six months or an apartment for a year and call it a home. That is a base use for a sacred word. A home is a place in which you are born, in which your people die and your progeny emerge. A home predicates the present, but particularly the past and with it the future. Any other variety of residence may be agreeable or the reverse, but it is not a home.

In Irving Place there are homes. Among them was the house in which Sylvia Waldron lived. It had been in her family for sixty years. In London a tenure such as that is common. In New York it is phenomenal.

To Sylvia the phenomenon was a matter of course. What amazed her were the migrations of others. Of Fanny, for instance. Each autumn Sylvia would say to her, "Where are you to be?" And Fanny, who at the time might be lodged in a hotel, or camping with a relative, or visiting at Tuxedo, or stopping in Westchester, never could tell. But by December the girl and her mother would find quarters somewhere and there remain until that acrobat, summer, turned handsprings into town and frightened them off.

Summer had not yet come. But May had and, with it, an eager glitter, skies of silk, all the caresses and surrenders of spring.

The season was becoming to Fanny. She fitted in it. She was a young Venus in Paris clothes—Aphrodite a maiden, touched up by Doucet. In her manner was a charm quite incandescent. In her voice were intonations that conveyed the sensation of a kiss. Her eyes were very loquacious. She could, when she chose, flood them with languors. She could, too, charge them with rebuke. You never knew, though, just what she would do. But you always did know what Sylvia would not.

Sylvia suggested the immateriality that the painters of long ago gave to certain figures which they wished to represent as floating from the canvas into space. You felt that her mind was clean as wholesome fruit, that her speech could no more weary than could a star, that her heart, like her house, was a home. She detained, but Fanny allured.

In spite of which or perhaps precisely because of their sheer dissimilarity the two girls were friends. But association weaves mysterious ties. It unites people who otherwise would come to blows. Fanny and Sylvia had been brought up together. The mesh woven in younger days was about them still, and on this particular noon in May they made a picture which, while contrasting, was charming.

"You really like my hat?"

The hat was gray. The girl's dress was gray. The skirt was of the variety known as trotabout. The whole thing was severely plain, yet astonishingly smart. Sylvia was also in street dress. The latter was black.

They were in the parlor. For in New York there are still parlors. And why not? A parlor—or parloir—is a talking-place. Yet in this instance not a gay place. It was spacious, sombre, severe.

"And now," said Fanny, after the hat had been properly praised, "tell me when it is to be?"

"When is what to be?"

"You and Arthur?"

"Next autumn."

"I shall send a fish knife," said Fanny, savorously. "A fish knife always looks so big and costs so little. Though if I could I would give you a diamond crown."

"Give me your promise to be bridesmaid, and you will have given me what I want from you most."

"But what am I to wear? And oh, Sylvia, how am I to get it? I don't dare any more to so much as look in on Annette, or Juliette, or Marguerite. There are streets into which I can no longer go. I told Loftus that, and he said—so sympathetically too—'Ah, is it memories that prevent you?' 'Rubbish,' I told him, 'it's bills.'"

"Fanny! How could you? He might have offered to pay them."

"If he had only offered to owe them!" Fanny laughed as she spoke and patted her perfect skirt.

"But he has other fish to fry. Do you know the other day I saw him—"

But what Fanny had seen was never told, or at least not then. Annandale was invading the parlor.

"Conquering hero!" cried Fanny. "I am here congratulating Sylvia."

"I congratulate myself that you are. I have a motor at the door, and I propose to take you both to Sherry's, afterward, if you like, to the races. There you may congratulate me."

"What is this about Sherry's?" Again the parlor was invaded. This time by Sylvia's mother. She had bright cheeks, bright eyes, bright hair. In her voice was indulgence, in her manner ease. She gave a hand to Fanny, the other to Annandale.

"In my day," she resumed, "girls did not go lunching without someone to look after them."

"They certainly did not go to Sherry's," said Annandale. "There was no Sherry's to go to. But why won't you come with us?"

"Thank you, Arthur. It is not because Fanny or Sylvia needs looking after. But when I was their age anything of the sort would have been thought so common. Yet then, what was common at that time seems to have been accepted since. Now, there is a chance to call me old-fashioned."

"I can do better than that," said Annandale, "I can call you grande dame."

"Yes," Fanny threw in, "and that, don't you think, is so superior to being merely—ahem—demned grand."

"Why, Fanny!" And Mrs. Waldron, at once amused at the jest and startled at the expression, shook her finger at her.

But Annandale hastened to her rescue. "Fanny is quite right, Mrs. Waldron. You meet women nowadays whose grandfathers, if they had any, were paving the streets while your own were governing the country and who, just because they happen to be beastly rich, put on airs that would be comical in an empress. Now, won't you change your mind and come with us? At Sherry's there are always some choice selections on view."

"You are not very tempting, Arthur. But if the girls think otherwise, take them. And don't forget. You dine with us tonight."

Thereat, presently, after a scurry through sunshine and streets, Sherry's was reached.

There Annandale wanted to order a châteaubriand. The girls rebelled. A maitre d'hôtel suggested melons and a suprême with a bombe to follow.

Annandale turned to him severely. "Ferdinand, I object to your telling me what you want me to eat."

"Let me order," said Sylvia. "Fanny, what would you like?"

"Cucumbers, asparagus, strawberries."

"Chicken?"

Fanny nodded.

"Yes," said Annandale to the chastened waiter, "order that and some moselle, and I want a Scotch and soda. There's Orr," he interrupted himself

to announce. "I wonder what he is doing uptown? And there's Loftus."

At the mention of Orr, Fanny, who had been eying an adjacent gown, evinced no interest. But at the mention of Loftus she glanced about the room.

It was large, high-ceiled, peopled with actresses and men-about-town, smart women and stupid boys, young girls and old beaux. From a balcony there dripped the twang of mandolins. In the air was the savor of pineapple, the smell of orris, the odor of food and flowers.

On entering Sylvia had stopped to say a word at one table, Fanny had loitered at another. Then in their trip to a table already reserved, a trip conducted by the maitre d'hôtel whom Annandale had rebuked, murmurs trailed after them, the echo of their names, observations profoundly analytical. "That's Fanny Price, the great beauty." "That's Miss Waldron, who is engaged to Arthur Annandale." "That is Annandale there"—the usual subtleties of the small people of a big city. Now, at the entrance, Orr and Loftus appeared.

"Shall I ask them to join us?" Annandale asked.

"Yes, do," said Fanny. "I like Mr. Orr so much."

But Loftus, who, with his hands in his pockets, a monocle in his eye, had been looking about with an air of great contempt for everybody, already with Orr was approaching. On reaching the table very little urging was required to induce them to sit, and, when seated they were, Loftus was next to Fanny.

"What are you doing uptown at this hour?" Annandale asked Orr, who had got between Loftus and Sylvia. "I thought you lawyers were all so infernally busy."

"Everybody ought to be," Orr replied. "Although an anarchist who had managed to get himself locked up, and whom I succeeded in getting out, confided to me that only imbeciles work. By way of exchange I had to confide to him that it is only imbeciles that do not."

"Now that," said Annandale, who had never done a stroke of work in his life, "is what I call a very dangerous theory."

"A theory that is not dangerous," Orr retorted, "can hardly be called a theory at all."

With superior tact Sylvia intervened. "But what is anarchy, Melanchthon? Socialism I know about, but anarchy—?"

"To put it vulgarly, I drink and you pay."

"But suppose I am an anarchist?"

"Then Sherry pays."

"But supposing he is an anarchist?"

"Then there is a row. And there will be one. The country is drifting that way. It will, I think, be bloody, but I think, too, it will be brief. Anarchists, you know, maintain that of all prejudices capital and matrimony are the stupidest. What they demand is the free circulation of money and women. As a nation, we are great at entertaining, but we will never entertain that."

"Why, then, did you not let the beggar rot where he was?" Annandale swiftly and severely inquired.

"Oh, you know, if I had not got him out someone else would have, and I thought it better that the circulation of money should proceed directly from his pocket to mine."

"You haven't any stupid prejudices yourself, that's clear," said Annandale, helping himself as he spoke to more Scotch. "Sylvia," he continued, "if I am ever up for murder I will retain Melanchthon Orr."

Orr laughed. "That retainer will never reach me. You would not hurt a fly."

"Wouldn't I?" And Annandale assumed an expression of great ferocity. "You don't know me. I can imagine circumstances in which I could wade in gore. By the way, I have ordered a revolver."

"What!"

"Yes, a burglar got in my place the night before last and woke me up. If he comes back and wakes me up again I'll blow his head off."

Sylvia looked at him much as she might at a boastful child. "Yes, yes, Arthur, but please don't take so much of that whisky."

"I think I will have a drop of it, if I may," said Loftus, who meanwhile had been talking to Fanny. In a moment he turned to her anew.

"Where are you going this summer?"

"To Narragansett. It is cool and cheap. Why don't you come?"

"It is such a beastly hole."

"Well, perhaps. But do you think you would think so if I were there?"

"That would rather depend on how you treated me."

"You mean, don't you, that it would rather depend on how I let you treat me?" Fanny, as she spoke, looked Loftus in the eyes and made a face at him.

That face, Loftus, after a momentary interlude with knife and fork, tried to mimic. "If a chap gave you the chance you would drive him to the devil."

On Fanny's lips a smile bubbled. She shook her pretty head. "No, not half so far. Not even so far as the other end of Fifth avenue, where I saw you trying to scrape acquaintance with that girl. Apropos. You might tell me. How are matters progressing? Has the castle capitulated?"

"I haven't an idea what you are talking about."

"That's right. Assume a virtue though you have it not. It's a good plan."

"It does not appear to be yours."

"Appearances may be deceptive."

"And even may not be."

Sylvia interrupted them. "What are you two quarreling about?"

"Mr. Loftus does not like my hat. Don't you like it, Mr. Orr?"

"I like everything about you, everything, from the crown of your head to the soles of your feet."

"There!" exclaimed Fanny. "That is the way I like to have a man talk."

"It is dreadfully difficult," Loftus threw in.

"You seem to find it so," Fanny threw back.

Sylvia raised a finger. "Mr. Loftus, if you do not stop quarreling with Fanny I will make you come and sit by me."

"If I am to look upon that as a punishment, Miss Waldron," Loftus with negligent gallantry replied, "what would you have me regard as a reward?"

"Arthur! Arthur!" Fanny cried. "Did you hear that? This man is making up to Sylvia."

But Annandale did not seem in the least alarmed. He was looking about for Ferdinand. "Here," he began, when at last the waiter appeared. "You neglect us shamefully. We want some more moselle and more Scotch."

"None for me," said Loftus rising. "I have an appointment."

"Appointment," Fanny announced, "is very good English for *rendezvous*."

"And *taisez-vous, mademoiselle*, is very good French for I wish it were with yourself."

"I have not a doubt of it."

"Fanny!" Sylvia objected. "You are impossible."

"Yes," Fanny indolently replied. "Yet then, to be impossible and seem the reverse is the proper caper for a debutante. Heigho! I wish girls smoked here. I would give a little of my small change for a cigarette. Are you really off, Royal. Well, my love to the lady."

CHAPTER III

THE EX-FIRST LADY

LOFTUS, letting himself into a hansom, sailed away. At Morris Park that afternoon there were to be races, and up the maelstrom of Fifth avenue came scudding motors, fleeting traps.

As the hansom descended the current Loftus nodded to this acquaintance and to that, occasionally raising his hat as women smiled and bowed. Occasionally, too, he contemplated what he could of himself in the little mirror at the side of the cab. He looked triumphant and treacherous.

Fanny, he reflected, was ideal. But exacting, ambitious even. She had a perfect mania for matrimony. There was another girl that he had in mind whom he fancied more reasonable. This other was Marie Durand.

In just what way he had met her was never quite clear. Fanny, who had witnessed the preliminary skirmish, always believed that he had picked her up. Afterward, at the time of the trial, it was so reported. The report was false in addition to being vulgar. Marie Durand was not of that sort. There was nothing fast or flirtatious about her. But she was a human being. She had eyes. She had a heart. By nature she was sensitive. Moreover, she was but nineteen. Being human, sensitive, and not very old, having eyes to see and a heart that throbbed, she was impressionable and, to her misfortune, Loftus impressed her.

Loftus was rather used to impressing people. He saw the girl on Fifth avenue, followed her home, learned her name—or thought he did—and sent her flowers every day until he saw her again, when he presumed to accost her. At that impertinence Marie tilted her nose and trotted on, distant, disdainful, demure.

But not indifferent. Not oblivious either. Often she had seen him. Occasionally on a high drag behind a piebald four-in-hand. In crowded

Fifth avenue, drags, with or without piebalds, are infrequent. This drag Marie had seen not merely tooling along the street but pictured in the press. With, of course, full accounts of the driver. As a consequence she knew who he was, knew that he was one of the rich young men of New York and that he moved and had his being in the upper circles.

Marie's own sphere of life was obscure. She lived with her father in Gay street. Her father, a tailor by trade, was a naturalized Frenchman, a gaunt Gaul, who had a sallow face, walked with a stoop, complained of his heart and adored his daughter. To him she was a pearl, a *perle*, rather. For though he had been long in New York and spoke English well, he had never quite acquired the accent.

Marie spoke English without any accent whatever. She also spoke French, sang in it, too, sang in Italian and, with a view to the lyric stage, or, more exactly, with the hope of studying for it abroad, was, at the time when this drama begins, taking lessons in what is termed the *bel canto*.

But her aspirations, in so far as they concerned Europe, her father was unable to gratify. He could not let her go alone and he could not afford to throw up what he called his beesness. Here, then, was this girl, pretty as a picture, with a lovely contralto voice, with aspirations entirely worldly, with wings, you might say, cooped in Gay street, spiritually and mentally starved there.

Gay street lies back of Jefferson Market. In shape a crescent, it curves briefly in a lost and dismal way through a region which, though but a block or two from Fifth avenue, is almost squalid. At one end of its short curve is a saloon, at the other an apothecary.

It was from this apothecary that Loftus learned Marie's name—or thought he did. For inadvertently the man got things mixed as his drugs and supplied Loftus with the name of a young woman who lived in a house next to the one in which Loftus had seen the girl enter.

What is more interesting is the fact that, though, while he was following her there, she had looked neither to the right nor to the left, or anywhere save straight ahead, she had been fully aware that he was behind her. How? We cannot tell. It is one of the mysteries of femininity. But once safely in,

boldly she peeked out. Loftus was crossing the street. Presently he entered the shop. For what, it did not take Marie more than a minute to conjecture.

Later in the day a motor van appeared in that street. On it was the name of a Broadway florist. Since the memory of man never before had such a thing happened. From the van a groom had hopped and, if you please, with roses. That, too, was phenomenal. Yet thereafter every day for a week there was the motor, the groom and flowers at a dollar and a half apiece. The recipient of these attentions was Miss Rebecca Cohen, the daughter of Mr. Abraham Cohen, who also, like Marie's father, was a tailor.

Marie saw the van, divined the mistake, and, being as full of fun as a kitten, greatly enjoyed the continued humor of it. For still into that sordid street the flowers poured. Every day, to the unhallowed surprise of Mr. Cohen and to the equal bewilderment of his offspring, a box of radiant roses was handed out.

In that surprise and bewilderment the neighborhood joined. Scandalized at the scandal Cohen questioned the groom, questioned the chauffeur. He might have saved himself the trouble. Then he inquired at the florist's. But there no one could be found who knew anything at all about anything whatever. Already he had questioned Rebecca. It seemed to him that in spite of her protests she must be engaged in some fathomless intrigue. But Rebecca, whose commercial instinct was beautifully developed, not only protested but appeased. She told her father that the roses were worth money. Furthermore, that which is worth money can be sold. Thereupon sold they were. But quite as inexplicably as the van had appeared so did its visits cease. When that happened Mr. Cohen felt and declared that he was robbed. He had come to regard the roses as assets.

Marie meanwhile, whom the humor of the situation had amused, ended by worrying over it. She was a good girl, as such conscientious, and it troubled her, at first only a little and then very much, to think that Loftus must believe that she was knowingly accepting his flowers. Moreover, her father had commented upon them; in commenting he had wondered. Marie began to fear that Loftus might discover the mistake and turn in and inundate her. She did not know quite what to do. She thought of writing to him, very distantly, in the third person, or else anonymously. But the letter

did not seem to get itself framed. Then, from thinking of that, she fell to thinking of him.

To see him she had only to close her eyes. Once he visited her in dream. He came accompanied by butterflies that fluttered about her and changed into kisses on her lips. Again she fancied him much sought after by ladies and became hotly and unaccountably vexed at the idea. It would be so lovely to really know him, she always decided. But she did not see at all how that ever could come about.

Yet, of course, it did come about. It came about, moreover, in a fashion as sordid as the street she lived in.

That street, though sordid, is relatively silent. It is beyond, in Sixth avenue, that you get a sample of real New York noise. The slam-bang of the trains overhead, the grinding grunt of the surface cars, the demon draymen, the clanging motors, the ceaseless crowds, collaborate in an uproar beside which a bombardment is restful. But though the entire thoroughfare is appalling, Jefferson Market, behind which Gay street squats, is infernal.

Loftus loathed it. Until he pursued the girl into its horrors never before had he been there. Nor, save for her, would he have returned. But return he did. For recompense he beheld her. She was strolling along, a roll of music under her arm, in the direction of Fifth avenue.

It was there he attempted to accost her. Without deigning to seem even aware that he had presumed to do so, she passed on and, in passing, turned into Washington Square, where, ascending the steps of a house, she vanished. It was then three by the clock of a beautiful day in April.

Loftus was as well able as another to put two and two together. He knew that young girls do not stroll about with a music roll under their arm for the fun of it. A music roll predicates lessons, and there where lessons are must also be a teacher.

From that teacher he was unaware of any good and valid reason why he should not himself take lessons. But fate is not unrelenting. Of such toil he was spared. He spared himself too any further toil that day. He felt that he had done enough. He had quarried the girl again, stalked her to what was obviously a boarding-house. He turned on his heel.

The next day he was back at that house, inquiring at the door. As a result he was shown into a shabby back parlor where he made the acquaintance of Mme. Machin, a tired old Frenchwoman, who, with rouge on her yellow cheeks, powder on her pointed nose, confided to him that she had been prima donna, though whether *assoluta* or *dissoluta* she omitted to state.

But her antecedents, her possibilities as well, Loftus divined at a glance and, while he was at it, divining too, that, personally, she was no better, and, financially, no better off than the law allows, asked point-blank about the Miss Cohen who had come there at three the day before. Learning then from the ex-first lady that the girl's name was not Cohen but Durand, he damned the apothecary and offered a hundred dollars to be introduced. Poverty is not a crime. But it is rumored to be an incentive. The crime which Loftus proposed to Mme. Machin is one which the code does not specify and the law cannot reach. Knowing which, the woman may have been guilty of it before and, the opportunity occurring, was guilty again—salving her conscience, if she had a conscience, with the convenient, "Mon Dieu, il faut vivre!"

Anyway, at the offer she did not so much as blink. She smiled very receptively and declared that she would be charmed.

When, therefore, two days later Marie re-entered that shabby back parlor she found Loftus there. Generally the girl and the ex-first lady got to work at once, sometimes with the *brindisi* from "Lucrezia Borgia," sometimes with arias from "Aïda." Save themselves no one was ever present.

Now at the unexpected spectacle of the man the cream of the girl's delicate skin suffused. It was as though there were claret in it. She had not an idea what to do and, before she could decide, ceremoniously, with due regard for the pomps of etiquette, Loftus had been introduced.

If abrupt, the introduction was at least conventional, and Marie, who had not the remotest suspicion that it was all bought and paid for and who, if consciously startled, subconsciously was pleased, attributing the whole thing to accident and, flushing still, smiled and sat down.

"I think," said Loftus, "that I have had the pleasure of seeing you before."

At this inanity Marie looked first at him, then at the carpet. She did not know at all what he was saying. But in his voice was a deference, in his manner a sorcery and in his bearing and appearance something that went to her head. It was all very novel and delightful, and she flushed again.

"Yes," Loftus resumed, "and when I did see you I committed a very grave offense. Can you forgive me?"

For countenance sake the girl turned to Mme. Machin. But the ex-first lady, pretexting a pretext, had gone.

"Can you?" Loftus requested. "Can you forgive?"

Forgive indeed! Had she not so forgiven that she had almost wished a renewal of that grave offense? She did not answer. It was her face that spoke for her. But the silence Loftus affected to misconstrue.

"Couldn't you try?"

"Yes." The monosyllable fell from her softly, almost inaudibly. Yet for his purpose it sufficed.

"Thank you. I hoped that you would. But will you let me tell you now how I came to behave as I did?"

To this, timorously, with the slightest movement of her pretty head, the girl assented.

"Because I could not help myself. Because at the first sight of you I knew that I loved you. Because I felt that I could never love anyone else."

Marie started. She was crimson. Starting, she half got from her seat. Loftus caught at her hand. She disengaged it. But he caught at it again.

"I love you," he continued, burning her with his words, with the contact of his fingers, that had intertwined with hers. "Look at me, I love your eyes. Speak to me, I love your voice."

But the door opened. Preceded by a precautionary roulade, the ex-first lady reappeared.

"Allons!" she remarked to the ceiling. "Et maintenant, mademoiselle, au travail."

Loftus stood up, took Marie's hand again, held it a second, nodded at the woman. In a moment he had gone.

"Au revoir," the ex-first lady called after him. She turned to the girl. "A gallant monsieur. And good to look at." Then seating herself at the piano she attacked the brindisi from "Lucrezia." "Ah! the segreto!" she interrupted herself to exclaim, "il segreto per esser felice—the secret of happiness! Mais! There is but one! C'est l'amour! And with a gallant monsieur like that! And rich! C'est le rêve! N'est ce pas, mon enfant?"

"Je vous en prie, madame," said Marie severely, or rather as severely as she could, for she was trembling with emotion, saturated with the love that had been thrown at her head, drenched with it, frightened too at the apperception of the secret which the aria that her teacher was strumming revealed.

CHAPTER IV

ENCHANTMENT

SAILING in the hansom down Fifth avenue, Loftus thought of that first interview with the girl, of the den in which it had occurred and of his subsequent visits there. Since the introduction he had seen her three times, seen, too, of course, that she was not up to Fanny, but he had seen also that she was less ambitious, more tractable in every way. Besides, one is not loved every afternoon. To him that was the main point, and of that point he was now tolerably sure.

Suddenly the hansom tacked, veered and landed him at the ex-first lady's door.

"Bonjour, mon beau seigneur," the woman began when, presently, he reached her lair. "The little one will not delay."

"And then?"

"Be tranquil. I have other cats to whip."

Mme. Machin was hatted and gloved. Loftus stuck his hand in his pocket. Mme. Machin was too genteel to notice. From the pocket he drew a roll of yellow bills. Mme. Machin affected entire unconcern. The bills he put in her paw. Mme. Machin was so entirely unconscious of the liberty that she turned to the mantel, picked up a bag of bead, opened it, took from it a little puff with which she dusted her nose. Then the puff went back into the bag. With it went the bills.

"I run," she announced. She moved to the door. There, looking at Loftus over her shoulder, she stopped. "You come again?"

For reply Loftus made a gesture.

"Yes," said the woman. "Naturally. It depends. But let me know. It is more commodious. Pas de scandale, eh?"

To this Loftus made no reply whatever. But his expression was translatable into "what do you take me for?"

"Allez!" the ex-first lady resumed. "I have confidence."

She opened the door and through it vanished. Loftus removed his gloves, seated himself at the piano, ran his fingers over the keys, struck a note which suggested another and attacked the waltz from "Faust." The appropriateness of it appealed to him. As he played he hummed. Then, passing upward with the score, he reached the "Salve Dimora," Faust's salute to Marguerite's home. But in the den where he sat the aria did not fit. He went back again to the waltz. Then, precisely as on the stage Marguerite appears, Marie entered.

Loftus jumped up, went to her, took her hand. It was trembling. He led her to a sofa, seating himself at her side, her hand still in his.

He looked at her. She had the prettiness and timidity of a kitten, a kitten's grace as well. Like a kitten, she could not have been vulgar or awkward had she tried. But association and environment had wrapped about her one of the invisible yet obvious mantles that differentiate class from class. Loftus was quite aware of that. He was, though, equally aware that love is a famous costumer. There are few mantles that it cannot remove and remake. That the girl loved him he knew. The tremor of her hand assured him more surely than words.

None the less he asked her. It seemed to him only civil. But she did not answer. The dinginess of the den oppressed him. It occurred to him that it might be oppressing her. Again he inquired. Only the tremor of the hand replied.

"Tell me," he repeated.

The girl disengaged her hand. She looked down and away.

"Won't you?" he insisted.

"I ought not to," she said at last.

"But why?"

With her parasol the girl poked at the carpet. "Because it is not right. It is not right that I should." But at once, with a little convulsive intake of the breath, she added, "Yet I do."

Then it seemed to her that the room was turning around, that the walls had receded, that there was but blankness. His lips were on hers. In their contact everything ceased to be save the consciousness of something so poignant, so new, that to still the pain of the joy of it she struggled to be free.

Kissing her again Loftus let her go. Dizzily she got from the sofa. The parasol had fallen. Her hat was awry. To straighten it she moved to a mirror. Her face was scarlet. Instantly fear possessed her, fear not of him but of herself. With uncertain fingers she tried to adjust the hat.

"I must go."

But Loftus came to her. Bending a bit he whispered in her ear: "Don't go—don't go ever."

Do what she might she could not manage with her hat. In the glass it was no longer that which she saw, nor her face, but an abyss, suddenly precipitate, that had opened there.

"No, don't go," Loftus was saying. "I love you and you love me."

It was, though, not love that was emotionalizing her then. It was fear. A fear of that abyss and of the lower depths beneath.

"Don't go," Loftus reiterated. "Don't, that is, if you do love me; and if you do, tell me, will you be my wife?"

At this, before her, in abrupt enchantment, the abyss disappeared. Where its depths had been were parterres of gems, slopes of asphodel, the gleam and brilliance of the gates of paradise.

"Your wife!" The wonder of it was in her voice and marveling eyes.

"Come." Taking her hand, Loftus led her to their former seat.

"But——"

"But what?"

"How can I be your wife? I am nobody."

"You are perfect. There is only one thing I fear——" Loftus hesitated. Nervously the girl looked at him.

"Only one," he continued. "I am not and never shall be half good enough for you."

"Oh!"

"Never half enough."

"Oh! How can you say that? It is not true. Could I care for you if it were?"

"And you do?"

"Don't you know it?"

"Then don't go, don't go from me ever."

"But——"

"Yes, I know. You are thinking of your father, of whom you have told me; perhaps, too, of my mother, of whom I told you. When she knows you and learns to love you, as she will, we can be married before all the world. We could now were I not dependent on her. Yet then, am I not dependent too on you? Come with me, and afterward——"

"I cannot," the girl cried; "it would kill my father."

"You have but to wire him that you have gone to be married, and it will be the truth."

"I cannot," the girl repeated. "Oh, what are you asking me to do?"

"I am asking you to be my wife. What is the ceremony to you? What are a few words mumbled by a hired priest? Love, love alone, is marriage."

"No, no. To you perhaps. But not to me."

"And the ceremony shall follow as soon as we can manage. Can you not trust me for that?"

"But——"

"Will you not trust me? If you are to put your whole life into my keeping you should at least begin by doing that."

The girl looked at the man and then away, at vistas he could not see, the winding slopes of asphodel, the sudden and precipitate abyss. Yet he spoke so fair, she told herself. Surely it was to the slopes he meant to take her, not to that blackening pit.

"Yet if you won't," Loftus continued, "it is best for both that we should part."

"For—for always?"

"Yes."

Just why he omitted to explain. But then there are explanations that explain nothing. Yet to her, for a moment, the threat was like a flash in darkness. For a moment she thought that she could not let him go. About her swarmed her dreams. Through them his kisses pierced. For a moment only. The flash had passed. She was in darkness again. Before her was the precipitate abyss. Shudderingly she drew from it.

But Loftus was very resolute. "If you will you have my promise."

For answer she looked at him, looked into his eyes, peered into them, deep down, striving to see what was there, trying to mirror her soul in his own.

"Before God and man I swear you shall be my wife."

At that, suddenly within her, fear melted away. If she had not seen his soul she had heard it. Where fear had been was faith. Dumb with the enchantment of a dream come true, she half arose. But his arms went about her and in them she lay like seaweed in the tide.

CHAPTER V

MARIE CHANGES HER NAME

GAY STREET knew Marie no more. Twenty-second street made her acquaintance. There, in the Arundel, an apartment house which is just around the corner from Gramercy Park, Loftus secured quarters for her.

These quarters, convenient for him, to her were temporary. She regarded them as a tent on the road to the slopes. Even in that light they were attractive. Though small, they were fastidiously furnished and formed what agents call a "bijou." Loftus, who had whims which the girl thought poetic, preferred "aviary." He preferred, too, that she should change her name. Durand seemed to him extremely plebeian. Mentally he cast about. Leroy suggested itself. It had in it an echo of France and also of old New York. As such it appealed to him and, therefore, to her. There and then Marie became known as Miss Leroy and, incidentally, very busy.

Every day Annette, Juliette and Marguerite had frocks for her to try on. There were hats to go with those frocks. There was lingerie to be selected, stuffs immaterial as moonbeams, cambrics that could be drawn through a ring. In addition, there was Signor Tambourini, who was to teach her how to handle her voice, and Baron Mesnilmontant, who was to teach her to handle a horse. When she so desired she had but to telephone and in five minutes there was a victoria at the door. For her sitting-room the florist who had so disturbed Mr. Cohen fetched flowers every other day.

In the flowers there were thorns, of course. Marie worried about many things, yet mainly because Mrs. Loftus had not yet "seen and learned to love her." Against that, though, there were difficulties. At first Mrs. Loftus had a dreadful cold. Then she had gone out of town to recuperate. This was very unfortunate, but like the quarters, only temporary. Loftus assured her of that. What he said was gospel.

The position in which the girl was placed worried her nevertheless. She knew it was wrong. But always she consoled herself with the belief that shortly it would be righted. On that belief she would have staked her soul. Had he not sworn it? Precisely how she would have acted had she realized that he had lied like a thief one may surmise and never know. The misery of life is the necessity of becoming accustomed to certain things. There are natures that adapt themselves more readily than others. There are also natures that cannot adapt themselves at all. Had Marie realized the truth it may be that she would have beaten her head against the walls. Yet it may also be that in the end adaptability would have come. But not happiness. Happiness consists, if it consists in anything, in being on good terms with oneself. Had Marie known the truth never could she have been that. In the circumstances it was considerate of Loftus to withhold it from her. But Loftus was a very considerate person. He hated tears, and scenes he frankly abominated.

Loftus, though considerate, was vain. It was regrettable to him that he could not parade Marie about. But social New York is severe. Among its members it refuses to countenance any open disregard for what's what. Though what occurs behind its back it is too high-bred to notice.

Loftus, unable to parade Marie about, paraded her in. To the aviary he brought men, some of whom having otherwise nothing to do with this drama need not delay its recital, but, among others, he brought Annandale and Orr.

Annandale, who could not keep a thing from Sylvia, told her about it. The story so shocked her that she first made a point of his not going there again and then debated whether she ought to recognize Loftus any more. In the process she confided the story to Fanny Price, who got suddenly red—a phenomenon rare with her and which annoyed her very much, so much that she bit her lip, desisting only through fear of making it bleed. What is the use of spoiling one's looks?

Marie, meanwhile, rather liked Annandale. She also rather liked Orr. One evening both were bidden to the aviary. At the bidding Annandale had hesitated. He did not wish to offend Sylvia. But reflecting that she need

never know, that, anyway, it was none of her business and, besides, what the deuce! he was not tied to her apron strings, was he? he concluded to go.

To that conclusion he was assisted by a cocktail. At the time he was in Madison Square, where on a ground floor he occupied a set of chambers, a suite of long, large rooms, sumptuously but soberly furnished with things massive and plain. Here he lived in much luxury and entire peace, save recently when he had lost a retainer and found a burglar. The memory of that intrusion recurring, he touched a bell.

A man appeared, smug and solemn, a new valet that he had got in to replace an old family servant whom an accident had eliminated.

"Harris, I forgot to ask. Did you get the revolver I told you to buy?"

"Yes, sir. A 32 calibre. It is in the pantry, sir."

"Put it in the drawer of my dressing-table."

"Yes, sir. Thank you, sir."

"And Harris, make me another cocktail." As the man was leaving Annandale called after him, "Make two."

It was these that assisted Annandale to his decision. A man of means, without immediate relatives, without ponderable cares, under their influence he felt rather free to do as he saw fit. The bidding to the aviary, telephoned for him to Harris, was for that evening. Yet that evening he was also expected in Irving Place. But Marie's invitation was for dinner, whereas he was not due at Sylvia's until later on.

It was not necessary, he told himself, to be in two places at once. He could dovetail one with another. Then presently, having dressed, he issued forth. But he had omitted to look at the evening papers. He was interested in certain stocks, and to learn what they were doing he stopped in at a neighboring club. There encountering men who asked him to drink, he accepted—though how much he was on the morrow unable to recall. Yet at the time the effect of the stuff, while insidious, was not apparent. When ultimately he reached the aviary he was feeling merely fit, a feeling which the dinner increased.

The dinner, perfect in itself, was perfectly served. The appointments were superior and the table a delight. Loftus when he did things did them well. Marie, in a creation of Paquin, imported by Annette, was a pleasure to behold. She had Orr at her right, Annandale at her left. Between them and Loftus were half a dozen other men. All were decorous and beautifully behaved. Except for the absence of feminine guests and one thing else, there was nothing to denote that they were not at the house of some smart young married woman. There was not a word uttered that could not have been bawled through a ballroom. There was not a suggestion not eminently discreet. In this respect only did the dinner differ from any other at which you might assist in the upper circles of New York life.

During the preliminary courses stocks were the sole topic. There was a boom on in the Street. Everybody was making money, including Marie, for whom Loftus had bought a few hundred A. O. T.

Orr alone had sold. "You are all mad," he declared. "The whole city is crazy. The country is on a debauch. Bulls cannot live forever. The corridas of the Street are just like those of Spain. It is the climax that differs. There the ring is swept by a supe, here it is struck by a crisis. That crisis may come next week, next month, next year. But it will come. It can no more desert the heavens of political economy than the stars can deviate from their course. It is not here yet, the bull is very lively, he is tossing everything sky high, but just when he is at his best and fiercest, just when you are shouting yourselves hoarse, the great espada, whose name is Time, with one swift thrust will transfix him. That is the fate of bulls."

"We are to be transfixed, are we?" said Annandale.

Marie looked over at Loftus. "Had I not better sell?"

Orr turned to her. "No; hold on and lose. A loss, particularly a fist loss, is always a good investment. Besides, if you will permit me to say, you should have no heed of such things. No, Miss Leroy. You should content yourself with continuing to be. A woman who does only that acquires a charm almost supernatural. This was the occupation of the young goddesses of old Greece. How delightful they were! The rose was their model. They had learned the secret of its witchery. They charmed and did nothing. To charm is never easy, but to do nothing is the most difficult of all things, as it is,

too, the most intellectual. Yes," Orr added after a moment, "it is also a thing which the rest of us sadly neglect."

"Oh, I say," Loftus threw in. "It is not so long ago that I heard you maintaining that only imbeciles were idle, that everybody should have something to do. You are rather contradictory, don't you think?"

"No, not a bit; and for the reason that then I was speaking of the generality of people, and now of the exceptional few. The idleness of the imbecile is always imbecilic, but the dreams of a poet have spells that enthrall. Try to fancy a busy poet. You cannot. It is an anomaly at which the imagination balks. By the same token you cannot fancy a useful Venus. You cannot fancy Psyche occupied with anything but love. Love is—or rather, should be—woman's sole occupation. The perfume of Eros should be about them all."

"The perfume of Eros!" muttered Annandale, to whom the phrase appealed. "The perfume of Eros!" he repeated and helped himself to wine. "I say, Orr, what the dickens is that?"

"Only the motor force of the universe."

"What?"

"Yes, indeed. It is the sublimate of love. And love is the source of human activity. It has no other. Without it civilization would retrograde and society return to the woods. Love is the basis of tragedy, the woof of romance, the incentive of commerce, of crime too, of heroism as well."

"My!" said Marie, whom the brief deluge of words amazed. "My!"

"I must get that off," Annandale muttered. In the *sotto voce* of thought he added, "to Sylvia." Obviously, he had had his fill. He stood up, making an excuse, imperceptibly lurching as he did so.

It was after ten. Long since coffee had been served. Orr, too, got up. He thanked his hostess. The other men imitated him. Loftus and Marie were alone.

Loftus went to a window. Then he turned. "Put on your hat, little girl, and we will go out; though, after all, I do not see that you need bother with a

hat, unless you prefer."

"I will do as you wish, dear."

Presently they were in Lexington avenue, a moment more, in Gramercy Park. Loftus, after fumbling for his key, opened one of the little gates. Within was silence. Occasionally, from the pavement without came the sound of footsteps.

Loftus and Marie seated themselves on a bench near the gate through which they had entered. Loftus was smoking. A boy passed; stopped, and sticking his nose through the railings, called: "Hi, mister, will you give me a light?"

Loftus made no answer. The boy called again. "Will you? And a cigar with it?"

Then he laughed and passed on. The silence increased. In the air was a fragrance, the clinging odor of the honeysuckle, the clean smell of fresh turf. Beyond, the great dim houses that front the park gave the place and the hour an accent of their own.

"I like it here," said Marie, "it is so elegant."

"Never let me hear you use that word again. It is provincial, suburban and, worse, it is shopgirl."

"Yes, dear."

"This evening I saw you eat an ice with a spoon. Never do that. Use a fork."

"Yes, dear."

Appeased by this docility, Loftus condescended to agree in turn with her. He, too, liked the park. At night, when the weather was decent, always he sat there a bit quite by himself. He had done so for years. He told her this, adding confidentially, "It is a habit."

To Marie the habit seemed most poetic. She said so, explaining that she was very fond of poetry.

Loftus looked up at the stars. "The only real poetry is there. By the way, do you believe in God?"

Marie, uncertain of her lover's creeds, hesitatingly glanced at him. "Yes—in a way. But I won't, if you object."

This self-abnegation pleased Loftus. He twisted his mustache and smiled. "But no, you little goose, I don't object in the least. On the contrary. It is right and proper that you should."

Gratified at this encouraging indulgence the girl's hand stole into his. Then for awhile they sat and talked about nothing whatever, which, of all subjects, is, perhaps, the least disagreeable. Wearying at last even of that, they got up to go.

At the gate Marie drew back. A man was passing, swaying uncertainly, arguing with himself.

"Why! it is Mr. Annandale," the girl in a frightened whisper murmured.

"I wonder where he got all that liquor?" Loftus queried. "Not at Sylvia Waldron's, I'll wager."

"Sylvia Waldron! What a sweet name," said Marie. "Who is she?"

"The girl he is engaged to."

"Is she pretty?"

"Oh, tall and dark, don't you know. Not at all my style."

But now night had swallowed Annandale. Loftus and Marie passed on.

CHAPTER VI

THE YELLOW FAY

AT noon the next day Annandale was not awake nor was he asleep. Through spaces in which memories met, entangled and sank, he was groping in search of himself. In these spaces there were things, some formless, others half-formed, that got between consciousness and interfered with the search.

These things pulled at him, tripped him, shoved him down to the memories that were sinking below. The spaces themselves were very dark. But, in the deeper depths, where memories swooned, the darkness was punctuated by slender flames the size of pins. They burned him.

Up and away he tried to rise. When he nearly succeeded, the things above, the things half-formed and formless that were waiting there, pushed him back. Again he tried. But the darkness was thick, the depths were thunderous, the things above pounded on his head, the thin flames lapped at him.

A force took and lifted him high, very high, and suddenly dropped him. In the abrupt descent he clutched at the things, but he was whirled through them to receding plains and up again, higher, still higher. There a ray filtered, in the light of which a memory staggered. He saw himself drinking in the rooms of that girl of Loftus. From there he passed into blankness at the end of which stood Sylvia, her face white and drawn. The vision vanished. Then it seemed to him that he was drinking with a fat man who had prominent teeth which he took from his mouth and changed into dice. But where? In hell, perhaps. Annandale was uncertain. He knew merely that he had been beastly drunk and that his head was simply splitting.

It continued to split. Hours later, sedatives and his servant aiding, the splitting ceased. But the blanks did not fill and though behind them he could not look, yet the subconscious self that registers and retains

everything we do and hear and say prompted him dumbly that behind the blanks there lurked the dismal and, perhaps, the dire.

This foreboding he attributed to his nerves. As a matter of fact they were rather shaky. But inaction was intolerable. He tried to write a note to Sylvia, but his hand was insufficiently steady. Failing in that he told Harris to get some flowers, take them to Miss Waldron, and say that he would call that evening. When later the man returned he brought no answer to the message.

"Was Miss Waldron out?" Annandale asked.

"I could not say, sir. I gave the flowers to the maid, and said as how you would call this evening, sir. The maid came back and said Miss Waldron would not be at 'ome."

At this Annandale flushed. It is true he was flushed already. But the affront was a little more than he could stand. Was he not engaged to her? What did she mean? Yet, then, too, what had he done? He wished to the devil he could tell. Try, though, as he might, he could not recall a thing except a vision of the girl's face, white, drawn and angered. The rest was not blurred, it was blank. It was extremely unfortunate, and Annandale decided that he was both unhappy and misused.

These meditations Harris interrupted.

"Mr. Orr, sir."

Annandale, who had been far away, looked up. Then he nodded.

A moment and Orr entered, eying Annandale curiously as he came.

"What a deuce of a chap you are," he began.

"Who? I? Why? Why do you say that?"

Orr looked about the room, contemplated a wide lounge of black leather, selected a straight-backed chair instead and seated himself, his hat and stick in his hand.

"You know well enough," he answered. "But there," he added at a protest from Annandale, "I don't propose to scold you. My visit is purely official.

Sylvia has asked me to inform you that the engagement is at an end."

Had any little dog which Annandale did not possess run out from nowhere and bit him fiercely on the leg, he could not have started more. He stared at Orr, who stared at him.

"But! It is impossible! What have I done?"

"It would be more to the point," Orr cheerfully replied, "to ask what you have not done. Though just what you did do Sylvia omitted to state. She said she could not."

"Could not tell you?"

"Could not or would not."

"Then I can't," said Annandale helplessly. "I went there last evening, I remember that. I remember, too, that she was angry. But why I do not know. Though, to be candid, she had cause to be. I was drunk."

"You seemed all right at the Arundel," Orr objected.

"At all events, drunk or sober, I cannot recall a thing. I have tried. I have tried hard. It has gone."

"Does it happen to you often?"

"What?"

"To forget like that?"

Annandale shook his head. He stood up and stalked about. Orr eyed him. He saw he was not shamming.

"You know, Annandale," he said at last, "you could not get many to accept that. But I can and do. I have seen cases of the kind before. Will you permit me to advise you?"

"Advise me? I wish to God you would."

"Littré, who was the wisest and ugliest of men, stated that Hippocrates recommended everybody to get tight once a month, asserting that it was

hygienic, good for the system, that it relaxed the nerves. Littré must have known what he was talking about. He put Hippocrates in French, into ten volumes at that! But what is good for everybody is bad for you. Don't drink, Annandale. It will get you into mischief."

"As if it had not? Look at the box I am in. But could you not get Sylvia to reconsider the matter? If she will, I pledge my word never to touch another drop. Of course, I apologize for everything I did. I am only too anxious to. You must understand that I am profoundly humiliated at the idea that I could have done anything she did not like. Certainly I did not intend to. Won't you say that to her?"

"Oh, I appreciate your position," said Orr. "To me the essence of crime is the intent. But, then, you see, I am a man. Now girls are different, and my cousin is very different even from most girls. Her views are very strict. Even otherwise, to any decent girl, a man in his cups is not agreeable. But then, you know, it is not merely a question of that. It is a question of matrimony. Matrimony generally means children. It is on them that the sins of the father are visited. There is the rub. Sylvia, I have not a doubt, will in the end forgive you, but were she to marry you and her children have your sins visited on them, never would she forgive herself. That I am sure you can realize. Anyway, for the moment argument with her would be futile. Besides, she has gone from town."

"Gone?"

"Yes, she left for Newport today. If I were you I would not attempt to follow. But I will write. I will tell her what you say, and I will tell you her reply."

Orr stood up. As he did so Annandale sat down. He cared for Sylvia Waldron, absolutely, uniquely. He felt, too, that she had cared for him. But while Orr had been speaking he told himself that her caring had ceased. Had any affection remained she could not have gone. It was his fault, though. He had shocked it out of existence. At the thought of that he felt unutterably miserable. What he felt he looked.

Orr saw his dejection. "Annandale," he said, "I hardly suppose that it will console you now to have me tell you that nothing earthly is of any

consequence, but, if you let the idea permeate you, ultimately perhaps it may. By the way, that is a new man you have, isn't it?"

In the wreckage amid which Annandale was floundering the question was like a rope; he caught at it and swam up.

"Who? Harris? Yes, the other poor devil I had was run over and died in an ambulance."

Orr tapped at his foot with his stick. "I may be in error," he said, "but I think I have seen him before."

"Then it must have been in London. He has been here only a short time. He tells me he used to be with Catty."

Catty was a relative of Annandale, a New York girl who had married the Duke of Kincardine.

"Possibly," said Orr. "Well," he added, reverting to the episode that had brought him there, "I am sorry for all this. I know you are. I will write to Sylvia and tell her so."

"Please do."

Annandale stood up and accompanied him to the door. When he turned life seemed blank as the blanks of the night.

CHAPTER VII

SWEET-AND-TWENTY

WHAT Sylvia replied to Orr's communication, whether indeed she replied at all, Annandale was not informed. He himself wrote to her. The letter was long; it was also abject. But he got no answer. He wrote again. The result was the same.

Then both at her and at himself he rebelled. He had supped on humiliations. He had no appetite for more. With some bravery, yet without bravado, he tore a leaf from his life and on it wrote *Finis*. The epitaph was figurative, but he thought it final. He thought that he could dictate to Fate. It is a mistake that many make.

Presently it surprised him to find how laborious is the task of putting people out of your life. If you have cared for them they will come back. In the pages of a book, in the pauses of speech, suddenly you behold them. In sleep they will not let you be. When you awake, there they are. However detestable their behavior may have been, in dream they visit and caress you. It takes time and vigilance; it takes more, it takes other faces to disperse them.

In spite of the *Finis*, Sylvia Waldron declined to be dismissed. She haunted Annandale. To memories of her he could not always show the door. Sometimes they were masked. Occasionally they reproached him. Again they seemed to say that did he but find out how, all might yet be well between them. But usually they came and stood gazing at him in love and grief eternal.

Then he would start. But what could he do? Besides, there was the *Finis*.

June meanwhile had come and gone. Summer with a frenzy quasi-maniacal had battered on the town. It is said that the hottest place in the world is a port on the Persian Gulf. But it is wrong to believe everything we

hear. When New York decides to be hot, the temperature of the Persian port must be agreeable by comparison.

One fetid noon Annandale fled. When he stopped it was at Narragansett.

Before August comes and with it the mob, Narragansett is charming. There is a mile of empty hotels, a stretch of sand fine as face powder, a heaving, heavenly desert of blue and an atmosphere charged with ozone and desire.

In August the hotels are packed. The stretch of sand is a stage. Every day a ballet is given there. The coryphées are the prettiest girls in the world—girls from Baltimore, girls from Philadelphia, girls from everywhere, girls with the Occident in their eyes and lips that say "Drink me."

At high noon, from the greenroom of the bath-houses, Sweet-and-twenty floats down, clasps the sea to the hum of harps, breasts the waves to the laugh of brass and re-emerges to the sound of trumpets.

After the dip, other diversions. Primarily flirtations on the lawns; later, polo at the Country Club; at night, dancing in the ballrooms, more flirtations on the galleries of the Casino, supper on the terrace below.

The terrace resembles, or, more exactly, on this particular summer did resemble, a roof garden on the ground floor. From a kiosk a band of Hungarians distributed selections of popular rot, sometimes their own delirious czardas. There, circled by variegated lights, fanned by the violins, girls and men sat beneath the high, wide, flowerful umbrellas of Japan.

Sometimes some of them, wearying of that, wandered into silences and shadows and lingered there, occupied with the crops, with strikes and other subjects of national interest which young people always discuss when holding hands in the dark.

To Newport, which squats disdainfully over the way, this is all too free and easy. To Annandale, it was distressing. Everywhere there was love, yet none for him. He had come to the Pier, as Narragansett is locally termed, because of Newport's propinquity. If Sylvia so much as signaled he could join her at once.

As yet no signaling was apparent. In its place was an influx of a reflection of fashion. The influx made Annandale swear. He hated to be seen stalking moodily about. He hated still more to have the rupture of his engagement discussed. The ballet on the beach irritated him. He told himself that he had come to the wrong shop. One day he thought of joining friends in Canada. The next he thought of joining friends who had gone abroad. The day after he thought that still he might be signaled.

In these uncertainties he loitered, annoyed but sober. Since the visit from Orr he had not touched a drop. Then, it so fell about that one evening he looked in at a dance at the Casino. Madness was in the air. The savors of the sea, the tonic of the dip, the stare of the harvest moon, go to the head, stir the heart, excite the pulse in a manner really Boccaccian.

Madness is contagious. It seemed particularly catching that night. The hall was filled, the gallery flushed. On a stage, at the end of the ballroom, musicians were tossing out in trailing rhythm the sorcery of "Il Bacio," the invitation of the "Cent Vierges," the muffled riot of "El Capitan."

To these incentives couples turned. Beneath the gallery where Annandale stood there was a vision of white arms, bare necks, slender waists circled by the blackness of men's sleeves. Three hundred girls and men were waltzing together, interchanging partners, clasping hands, gazing into each other's eyes.

Behind Annandale a group had gathered. They were talking, yet of what he did not heed. But, presently, into the conversation filtered the freshness of another voice.

"I quite believe, you know," the voice was saying, "that a girl who stops here this summer will stop at nothing next."

At the jest Annandale turned. There, pretty as a peach but rather more amusing, stood Fanny Price.

"Hamlet!" she exclaimed.

Annandale resembled the Dane as little as he did the devil. He was fully aware of that. But he was equally aware that he must seem blue. He

straightened himself and smiled. Then at once it occurred to him that Fanny might be a signal bearer.

"How do you do?" he said. "Don't you want to come and sit on the terrace? When did you get here?"

"Just now. I am over from Newport. They told me there that I ought to come in disguise. They call it slumming."

"Yes," Annandale inanely and eagerly replied. Of the little speech he had caught but one word—Newport.

"Now, if I go with you, will you give me something pink, something with raspberries in it?"

Fanny, as she spoke, disengaged herself from the people with whom she had come.

"You saw Sylvia, didn't you?" he asked, when at last through coils of girls and men they reached the terrace below.

Fanny nodded. "Suppose we sit here," she said, indicating a table from which grew a big parasol.

"Did she say anything?"

Fanny sat down. Annandale seated himself by her. "You know? Don't you ——?"

"Oh, yes," Fanny interrupted. "But then——"

"Then what?"

"Nothing. Only it is so much better so, don't you think?"

"Better!" Annandale fiercely repeated.

"Why, yes. You and Sylvia were totally unsuited for each other. She is the best and dearest girl in the world. But—here is the waiter. Will you tell him to fetch me a lemon squash?"

Annandale gave the order.

"With raspberries in it," Fanny called at the waiter's retreating back. "Aren't you going to take anything?"

In deep gloom Annandale shook his head.

Fanny laughed. "Drink delights you not; no, nor woman either."

"You see——"

"Yes, yes, yes. Of course I see. But why cannot you? Why can't you see that you and Sylvia stood as much chance of hitting it off as though you both spoke a different language? A break was bound to come."

But now the man appeared with the squash. Fanny looked at it. "Only two raspberries," she cried. "And such little ones."

"Bring a dish of them," said Annandale. "I suppose," he resumed as the waiter again retreated, "I suppose she will find somebody with whom she can hit it off."

"Yes, of course. There is me and there are other girls. But the men will be few. They will be elderly, I think, and I think, too, tame enough to eat out of her hand."

"You think, then, that I am out of the running?"

Fanny did not answer. She was drinking the squash. When she put it down she put with it the subject. It bored her.

"Are you going to be here long?" she asked. Until a moment before Annandale had been wavering. But now his mind was made up. Or he thought it was.

"No. I am off tomorrow."

"Where to?"

"The North Woods, perhaps. I am not sure."

"If you are not sure, you cannot be in any very tearing haste. Why not stop a day or two longer and take me about?"

Annandale looked at her. In the look was surprise; inquiry, too.

"Yes. Why not?"

Annandale's look deepened into a stare.

"Now, don't be stupid," said Fanny, to whom such stares were familiar. "I am not trying to get up a flirtation with you. But I must have someone to talk to."

"I like to hear you talk."

"Yes; men always like nonsense."

"Only from a pretty girl, though."

"Do you know," said Fanny, rising from beneath the big parasol, "the waiter didn't bring the raspberries. No matter now, though. I must go and find mother. This is no place for her to be out alone."

CHAPTER VIII

TWO IN A TURRET

FROM a back gallery of the Casino a narrow stair leads to a tower. Up that stair Annandale one afternoon invited Fanny Price.

A fortnight had gone, two weeks of dressing and undressing, of dinners, dances and dips; a succession of mellow mornings; long, green afternoons, dusks stabbed by sudden stars and nights lit by a moon that painted the ocean, penetrated the shadows, checkered the underbrush with silver spots.

But now, though the mornings were as mellow and the afternoons as green, though in the air the same madness subsisted and the nights were as languid as before, verandas were emptying, there were wide spaces where once were thick crowds. The end of the season had come.

In the procession of these things Annandale had put the North Woods from him; he had put, too, the thought of journeying abroad. With them he had put also any hope that Sylvia would signal him back.

For awhile the hope had persisted, as the light of a candle persists. Then it had dwindled, flickered and sunk. That is the way with hope. Though sometimes it is snuffed. You are in darkness. But through that darkness occasionally another light will be upheld. It may not, perhaps, be intended for you, but it may enable you to see.

Aided by another light, Annandale had begun to discern his way. He should, of course, have remained in darkness. To darkness, were this fiction, he would be condemned. But this is not fiction. The drama with which these pages deal is documented from life. It was Fanny who held the light.

During the month that had gone he had been almost constantly at her side. The fact that one light may be replaced by another had not at first occurred to him. Presently the ease with which such substitution can be

effected had mystified him very much. He was not prepared for anything of the kind. He had arranged to be a gloomy, disappointed man. He kept telling himself that if Sylvia had stuck to him he would have been true to her his whole life through. But she had not stuck to him, and the withdrawal of herself had left existence so empty that, unknown even to him, Nature had been filling the vacuum which she abhors.

In this, Nature had been greatly aided. Fanny Price was a remarkably fetching young girl. To a man out of court and consequently out of sorts the companionship of a pocket Venus is tonifying in the extreme. It is not merely that, it is recuperative. It banishes the blues. It establishes a new court, and with it a new code of its own.

The censorious allege that this is all wrong. It may be that they are right. But Nature is not censorious. Nature is not even ethical. She has no standards of right, no canons of wrong. What she does have is her way. A saint may defy her. Annandale was not that by a long shot. He was simply a human being, one that had been punished, and, as he thought, unjustly punished, for that which might have been condoned. Injustice humiliates. Saints may welcome humiliation, but human beings resent it.

Over the emptiness which Sylvia had created there brooded therefore two things. One was darkness, the other pique. In the light which Fanny upheld it seemed to Annandale that they might be dispersed. This idea, which he regarded as his very own, and consequently as highly original, was not his in the least. It was Nature prompting him to fill the vacuum which she so dislikes.

Instigated by her, Annandale invited Fanny up a stair and into a tower, a place remote, aloof, furnished with seats for just two.

Fanny had not been there before. She had heard, though, of its aloofness; it was regarded as a dangerous spot. But Fanny was a brave girl. Besides, Annandale was at his worst, and even at his best was not very alarming.

The ascent effected, Fanny peeped from a casement. "Why," she exclaimed, "you can see everywhere!" She looked about. "But no one can see you."

Assured of that, she produced a little gold box. On the back were her initials in jewels. She opened it, took a cigarette and lit it. "Will you have one?" she asked.

"This is a deuced nice case," said Annandale.

Fanny puffed and smiled.

"A present, I suppose."

"Yes. But you must not ask from whom."

Annandale looked out at the landscape, then in at the girl. "There is something else I want to ask."

So grave was his tone that Fanny deployed for action.

"Will you marry me?"

Though Fanny had deployed, the shot bowled her over. Into one of the chairs she dropped. Already Annandale had captured the other.

"Will you?"

But Fanny was recovering. With an air of vexation in which there was amusement, she puffed at her cigarette and then at him.

"Now, honestly, have I ever given you the slightest encouragement to ask me that?" She hesitated a moment, puffed again and added: "We have been friends, I think; let us remain so."

Annandale, who was in loose white flannels, contemplated his tight white shoes. Then his eyes sought hers. "Are you interested in Loftus?"

"That is none of your business," Fanny proudly and promptly replied. As she spoke she got from her seat, approached the casement, gazed out and away.

"I do not believe you are," Annandale announced to her slender waist. "But if I am wrong, it is hardly disloyalty to him to say that he is not good enough for you."

Beneath the tower was a tennis court. Fanny made a face at it. But the face must have been insufficient. Looking over her shoulder at Annandale, she showed her teeth.

"Do you fancy a girl cares for a man because he is or is not good enough? When a girl cares she cares because she cannot help herself."

"I know that is the way with a man, or at least with me. I cannot help caring for you."

"Nor could you help caring for Sylvia."

"She is so different."

"Yes," said Fanny dreamily, "and so are you." Though to whom she referred she did not say, nor did Annandale ask. She gave him no chance. "Next month you will not be able to help caring for some other girl."

"Not if you would take me."

"But, you see, I don't care for you."

"But couldn't you?" Annandale persisted. "Couldn't you if you tried? Of course, in saying that Loftus is not good enough for you I don't mean that I am. But if you could try I would."

At this program Fanny laughed. "We should be a pair of Christian Endeavorers, shouldn't we?"

To the levity of that Annandale found no immediate reply. Yet presently, with an irrelevance more obvious than real, he threw out: "He has gone abroad, you know."

"Who? Loftus?"

"Yes, for a year, I believe."

Fanny turned to the tennis court again. It was, though, not that which she saw, but a hope that was slipping away, sinking away, sinking down into death dishonored. For a moment she was very still. A movement of Annandale's aroused her.

"Come," she said. "It is hot here. Let us go."

Gathering a fold of her skirt, Fanny descended the stair. Annandale filed after. On a balcony below a lady with faded hair and gimlet eyes pounced at her.

"I have been hunting for you everywhere," the lady exclaimed. "Aren't you going to dress?" Then she nodded to Annandale.

Annandale touched his cap. "How do you do, Mrs. Price?"

He would have lingered, but Fanny dismissed him.

"Good-bye," she said. "I may see you this evening."

As he ambled off Mrs. Price returned to the charge. "Where have you been?"

Fanny patted a yawn. "Listening to sweet nothings."

"From him? Why, he hasn't anything, has he? What did you do?"

Fanny patted another yawn or else another sigh. "I fell on his neck and sobbed for joy."

"Nonsense. Has he anything, tell me?"

"Not enough to entertain on. Twenty-five thousand a year, I think."

"The impertinence of it!" said the lady.

Had her daughter been an heiress a duke would hardly have satisfied her. As things were, or more exactly, since the girl began to grow in beauty she had dreamed for her but one dream—a brilliant match. To Mrs. Price there could be no brilliance if the party of the second part had a dollar less than ten million.

"You might have had Loftus," she declared at last. "Where is he, do you know?"

"Abroad, I hear."

"With that creature?"

Mrs. Price in common with many others had heard of Marie Leroy. But though others in hearing had not heeded, Mrs. Price took it as a personal affront.

"Then it is your fault," she snarled. "You could have had him if you had wanted. Don't tell me. He was in love with you. I could see it."

Fanny was looking at the ocean. A white sail was fainting in the distance. Like it, a hope she had had was fading away. She watched it go. It had been very fair, very dear, more dear and fair than any she had known. But it was going. It was out of reach and now out of sight. She could not beckon to it.

"What are you staring at?" Mrs. Price asked.

"A sail out there," the girl answered.

Then presently mother and daughter passed into an adjoining corridor where they had rooms.

CHAPTER IX

FANNY CHANGES HER CLOTHES

FANNY did not appear that evening. In search of her Annandale prowled vainly around. But on the morrow he ran into her on the beach.

It was still as fine as powder. To have found elbow room there a few days previous you would have had to go out to sea. Now, in and on it children were making hillocks and holes. Near them a few groups of older people loitered. But the coryphées that had danced there were migrating. Already the Rockingham, a big hotel which faced the beach, had closed. Sweet-and-twenty was packing her trunk.

The morning itself was of the quality which Lowell has catalogued as from the Gulf adrift. In the air was a caress. Fanny, in a frock the color of pale pastel pink, a wide hat in which that color was repeated, her eyes blue as the sea and bluer, added to its charm.

As Annandale approached she smiled and gave him a finger. But at once the smile fell from her. With the finger which he had released she pointed at the big hotel. Annandale turned. Other people were turning. Some were running. A child that had been at play in the sand jumped and clapped his hands. About one side of the hotel a sheet of flame was climbing, crackling in and out. A cry of "Fire!" caught up and renewed, mounted in the crystalline air.

"Damn!" said Annandale. "If that goes——"

Fanny said nothing. Her eyes widened. Through the windows that front the beach more flames were leaping. From the side the first flames passed to shops over the way, passed back with fresh ones created and joined the others beyond. Above was smoke. Higher yet the tender blue of the sky. But below was a whirlwind of ochre, scarlet and gamboge, a fierce yet compact tornado of oscillant hues, shot with green and shuttled with black. Then

suddenly, with a roar, the tornado doubled, the roof had fallen. The child that had jumped and clapped his hands, feebly now was beginning to cry.

"It is glorious," said Fanny.

"I am afraid—" Annandale muttered.

Fanny glanced at him. Yet at once she understood. On the other side of the hotel, across the road, the Casino stood. Her mother, of course, would be safe. But her clothes! At thought of them her hand went to her throat.

"Do you think the Casino will catch?" she gasped.

Annandale nodded.

"Oh," she continued, "I shan't have a stitch, not one."

"Yes, you shall," Annandale heroically retorted. "I will see to them. But I must run. Find your mother if you can and take her to the Inn."

The Inn, a hotel half a mile away, was where Annandale lodged. At once he was off. Shortly, by a detour, he got to the other side of the fire. As he swung about he saw that the Casino's ballroom had caught. But that part of the place was of wood. The other end, where Fanny lodged, was of wood also, but it was also partly of stone. To this part as yet the flames had not reached.

As Annandale ran he told himself that he would have time to get in and get out, but he told himself too that it was a ridiculous job. Fanny's clothes a stroke of his pen could replace. But now the crowd impeded him. Lines had formed. Buckets were being passed. There were throngs of natives and resorters. Through them he pushed.

At the further entrance to the Casino, above which he knew the Prices lodged, a fat policeman stood, blocking the way. Annandale shoved him aside, sprang up the stairs, reached the room, fumbled with the door. It was locked.

Annandale swore deeply, tried the door with his shoulder, kicked at it till it cracked, kicked again, throwing himself against it with all his weight, then, not the door, but the fastenings of the lock broke and he went

sprawling in. Through the open window he could see the flames, he could hear them, he could hear too the cries of the crowd. But he had no time to waste. He tore around the room.

In one corner was a deep closet, full of clothes. He took them and threw them in armfuls on the bed. In another corner was a bureau, the drawers packed with scented lingerie. These on the bed he emptied also. What else did women wear? he wondered. Oh, yes, he remembered; hats certainly and probably shoes. Around the room he tore again. But already the bed was mountainous. He turned it all over on the floor, gathered up as much as the coverlid would hold and made a hasty bundle of it. Beneath was a blanket; he filled that, made a bundle of it also, repeated the operation with a sheet. Into another sheet he threw hats which meanwhile had loomed in boxes on a shelf, and dragging a curtain down filled that with shoes which also he had found, changed his mind and stuffed them into a pillow case, tossing in after them articles from a dressing-table, brushes and combs, odds and ends, helter skelter.

But in dragging the curtain from the window he had noticed a writing-desk. After he had finished with the pillow case he returned to it. Like the door it was locked. He kicked at it, kicked it open, discovered in it loose money and trinkets, stuck them in his pockets, grabbed at the bundles and dashed from the room just as with a roar the flames leaped in.

In the corridor he tripped, but he was up again with the tightly tied bundles and down the stair before the flames and the smoke of them could catch him. Once on the road without he turned to look, but the flames pirouetting in increasing size made it too hot to linger. Down the road he went, not overweighted but impeded by the awkward bundles, and staggered first into an engulfing, shouting crowd, then into a convenient hack, in which he reached the Inn, minus his cap and perspiring profusely.

The Prices as yet had not turned up. Annandale secured rooms for them, had the bundles taken there, went to his own quarters, re-emerged shortly fresh as paint, hungry as a wolf.

It was high noon. From beyond drifted the sound of cries, the smell of smoke, the commotion of flight. The Rockingham had gone, the adjacent shops and bath houses with it; the Casino had fallen. Hurrying to the

railway station beyond came people with handbags, wagons with trunks. From the air the caress had passed. There was panic in it.

But presently the flames showed less voluminous. After devouring all that they conveniently could they were subsiding. It was apparent that the worst was over. Then at last Fanny and her mother drove up.

From the veranda where he stood Annandale ran down to meet them. "I have your things," he cried. "I have rooms for you also."

"Hobson is not in it with you," said Fanny, when the tale of the bundles had been told. "I could kiss you. I would if mamma were not here."

For that, ordinarily, Fanny would have been promptly sat upon. But here was the exceptional. Mrs. Price recognized it or appeared to. Instead of rebuking the girl and snubbing the man, Mrs. Price condescended to tell Annandale that he was "too good."

This was very nice. Annandale felt over-rewarded. Then, shortly, the midday meal ensuing, he conducted mother and daughter to the restaurant, sat with them at table, ordered Ruinart cup and assumed family airs. Later, in a motor, he took Fanny to view the ruins, hummed her over the country and later still procured for her a lemon squash with plenty of raspberries in it, which she consumed on the porch, to the sound of the waves, by the light of the stars.

Meanwhile she had changed her pastel frock for another, which, if a bit rumpled in transit, became her wonderfully well.

Annandale commented on it. "By the way," he suddenly interrupted himself to remark, "I have more of your things. I stuffed them in my pocket and forgot them entirely. I will go and fetch them now."

"Don't bother. Tomorrow will do. What are they, do you remember?"

"Money and jewelry. Rings and pins, I think. I am sure there were pins. One of them stuck in me."

"Any clothes?"

"Clothes!" Annandale echoed in surprise. "Why, no, are any missing?"

"My mother's. They were in the room next to mine."

"The Lord forgive me, I never thought of it."

"It does not really matter. Only we will have to go to town tomorrow. Mamma has not a stitch."

"The devil!" muttered Annandale in fierce self-reprobaton. "Hang my stupidity. I am a fool."

"You are nothing of the kind. If it were not for you I would not have a stitch either."

"That is all very well. But I have bungled matters dreadfully. I don't know what your mother can think of me. I do know, though, that I wish she would let me replace the things which she has lost through my fault."

In the sky a star was falling, swiftly, silently, like a drop of water on a window-pane. Fanny watched it. She had been lolling back in a chair. But at Annandale's suggestion she sat up. "That is absurd," she announced.

"Well, then, it would be only nice and fair of you to put me in a position where, without offense, I could do so."

But Fanny was rising. "It is late," she announced. "I must go."

Annandale caught at her. "Say 'Yes,'" he implored. "Or at least don't say 'No.' Say something."

"Something, then. There, let me be."

At that Annandale, who still held her, held her yet tighter. "You are the dearest girl in all the world."

Fanny gave him a little shove. "Don't do that, anyone might see you."

"Yes, and see too that you belong to me."

"I am not so sure."

"You shan't go then till you are." Annandale, as he spoke, planted himself uncircuitously before her.

"Oh," said Fanny, in a little sugary, demure voice, "if you are going to use brute force——"

"I am."

"Then I give in."

"For keeps?"

"Don't, there's my mother."

In the doorway beyond, Mrs. Price had loomed. Fanny joined her. Annandale followed, denouncing himself to the lady for the oversight that noon. Yet, whether because of that oversight of his or because of some foresight of her own, so grim was Mrs. Price that Annandale, concluding that it would be more cheerful elsewhere, turned tail, ambled out to the road and across it to the sea wall, where he sat and kicked his heels and told himself that he was engaged.

In the telling he lost himself in impossibilities and wondered how it would fare with him and how with Sylvia could the past be mended and the old plans mature. For though Fanny allured, Sylvia enchained. Fanny was delicious. But he fancied that other men had found her so. He fancied that her heart had been an inn, and he knew that Sylvia's was a home. Yet from that he was barred. To those that lack homes hotels are convenient.

Across the way meanwhile Mrs. Price was very busy. In looming on the veranda it had seemed to her that her daughter and that man were occupied with certain ceremonies. Regarding them she attacked the girl at once.

"You have not taken him?" she began by way of reconnaissance.

That afternoon Fanny had visited ruins. There were others more personal that she was viewing then, the ruins of fair things not dead but destroyed.

"Answer me," Mrs. Price commanded.

The girl started. But she had been far away—in that lovely land where dreams come true and then, it may be, turn into nightmares. Through the dreams hand in hand with Loftus she had been strolling. Now she must put them all away.

"Answer me," Mrs. Price repeated.

"I am afraid so."

Into a misty and deserted parlor of the Inn Mrs. Price pulled the girl and there let fire.

"Afraid! You ought to be! What will your father say?"

The father here projected was a gentleman who resided abroad and who seldom opened his mouth except to put something in it.

"And Fred!"

Fred was Fanny's brother, a young chap whose opinions were of no value to anyone, himself included.

"And everybody!"

Everybody was the upper current of social life.

"And Sylvia!"

The earlier shots had not inflicted any visible damage, but this must have told.

"I shall have to write to her," Fanny with unusual meekness replied.

"Yes, do. Do by all means. Tell her you have taken her leavings. And why? Merciful heavens, why? If you were as staid and stiff as she I could understand. But a girl like you, with your tastes, your extravagances, a girl with a national reputation for beauty, to go and accept twenty-five thousand a year is—is—sinful, that's what it is. Your own father has that, and on it we are out at elbows. It is just about enough for you to dress on. Oh, Fanny, Fanny!"

Hysterically the old lady waved her hands. "Oh, Fanny, I have so prayed that you would make a brilliant match. I have scrimped and saved that you might, and you go and take a blond beast of a pauper. It is too cruel!"

Fanny winced. It was cruel. But the cruelty was not hers. It was Fate's. She too had hoped for the very marriage her mother had so ardently desired.

But Loftus had not cared. Occupied elsewhere he had sailed away. As well then Annandale as another.

"You see, you know," she said in a wretched effort at smoothing things over, "he is quite a hero."

But this was too much. Mrs. Price shook her head like a battle horse and fairly neighed.

"Because he saved your clothes? If it had been your life and you had said 'Thank you' it would have been ample. But your clothes! Not mine; the beast had not sense enough for that, but yours! I do hope you will give that as an excuse to Sylvia!"

CHAPTER X

A VICTIM

SYLVIA had gone from Newport. She was then at Lenox. It was there the previous autumn that her interest in Annandale had begun. The interest had so deepened that she gave him her heart. Never before had she given that to anyone. Annandale had taken it and then, one night, he had so bruised it that she thought it broken. He had written that he had not meant to. His letter had been full of regrets, of protestations, of bad grammar. Such things may palliate, but they do not cure. Only time can do that.

Time is a strange emollient. In its mysterious potency it softens without our knowledge. Suddenly a whisper, a breeze that passes, shows that it has done its work. With Sylvia time was having its will. Furtively she had found herself wondering, as Annandale had wondered, how it should fare with her, and how with him, could the past be effaced and the old days renewed. But those days were gone, she decided. Though into that decision a doubt would creep, not indeed concerning the departure, but concerning her attitude and the justice of it.

Annandale had sinned. He had sinned wantonly, grievously. From an atmosphere of vice—an atmosphere from which, under pain of her displeasure, she had distinctly warned him—he had staggered to her, its pollution about him, reeking with drink, talking abundantly about nothing imaginable, and at her just remonstrance had become instantly irritable, refusing almost to leave the house.

So had his condition and the spectacle of it shocked her that, for awhile, memory of him and of it was repellent. In her own eyes she felt degraded. That men drank, she knew. But in her sphere of life they drank either moderately or else in haunts invisible to her. And it was precisely from such

a haunt he had come, a shameless haunt, one that sullied her even to know of.

Yes, he had sinned, wantonly, grievously, almost unforgivably. Almost, she reflected, but perhaps not quite. In his letter of protest and regret he had told her that he remembered nothing, nothing whatever, absolutely nothing at all, save one vague, brief vision of herself. The rest, the beginning, the end, the inter-spaces were, he assured her, blank. At first she had thought that sheer nonsense. But, later, the earnest way in which it was put impressed her. Then on the heels of that communication there had followed one from Orr, indorsing what Annandale said, declaring that it was all quite possible, adding that, in certain temperaments, memory when influenced by toxics will play tricks stranger than the average mind can comfortably credit.

These letters she had not answered. Logically she could not admit the validity of the statements which they contained. But the heart has logic which logic does not know. Then, too, is there not that within us that prompts us to believe less what we should than what we wish? Sylvia's reason, guided by her inexperience, refused at first to accept the idea that any sane man could act as Annandale had and afterward be oblivious of it. That remorse there should be was only natural, but that there should be no memory of anything whatever seemed to her absurd.

But there was her cousin's assurance to the contrary. Then imperceptibly, little by little, that assurance, filtering through the saddened girl, took possession of her, insisting on recognition, telling her that, though her lover had erred, yet, in erring, he was more to be pitied than condemned. Dominated by drink, which, Orr added, he had promised to renounce, he had gone to that haunt and, contaminated there, knew not what he did. But she, instead of realizing that, she who was to have been his in sickness and health, for better, for worse, she, in her pride, had dismissed him.

He had erred, Sylvia told herself, deeply, grievously, but so, too, had she. She had condemned when she should have condoned; she had spurned him when it was her solicitude that he needed.

At the sure cognition of that, it was as though from her eyes a bandage had fallen. Then at once in her tender conscience she beheld herself,

detestable in pride, a girl without a heart, one of whom he, no doubt, was well rid of.

It was during the process of this awakening that the conflagration at Narragansett Pier occurred. Sylvia read of it. She read, too, of certain prowesses which the dismissed had displayed.

The account, very inexact as such accounts always are, was also highly colored, spun out for space purposes for much more than the space was worth. Had you not known better you would have taken it for granted that the heroism of Annandale was on a par with that of Leonidas at Thermopylæ and even of Roosevelt at San Juan. It quite stirred you.

It stirred Sylvia. The paper fell from her. But the past returned. At once it seemed to her that it might be mended and the old days renewed. The hero of whom the paper told she knew now that she had wholly loved, and she knew, too, that wholly she still loved him.

Time had done its work ridiculously, inopportunately, yet effectively at last. But the gates of life are double. On one stands written "Too Soon." On the other "Too Late." It is unfortunate to get wedged between them. Of that fact Sylvia became rapidly aware. On the morrow she began a letter to Annandale. Before it was finished there came one from Fanny, announcing that she was to be Annandale's wife.

In certain crises of the emotions there is a certain sense of unreality. Even as Sylvia read what Fanny said she could not grasp it. When presently she did, she could not believe it. But there it was. Then immediately she experienced the agony which comes when we battle in dream with the intangible and the dread, when we know it is dream and yet feel it is death.

"It is all my fault," she cried. She found but that. At the moment she was in that condition which precedes the great commotion of tears, when the strangulation of agony is subsiding and contracted nerves distend. But the tears did not come. The pain was infinite. There was a weight which she felt not without but within, a weight so heavy that she thought she could not bear it. It racked her. Only her mind was active. "It is my fault," she repeated. Then she added, "And my cross."

From a crisis such as this, in a nature such as hers, the soul issues as from an orgy. It has supped on sorrow. It is fed. It ceases to look back. It looks forward, marveling indeed that it should look at all, yet looking. Life's burdens are more bearable than the despairful think. Until the eyes are closed and the heart no longer beats, in some way, somehow, they can be carried.

Sylvia took up her cross. It was leaden. But in the effort she was aided. Pride helped her. The assistance of pride may be poor, yet is it not better than none? To Sylvia it was useful. It enabled her to answer Fanny's letter.

"You have my congratulations, Fanny dear," she wrote, "all of them, my best and warmest, and so has Arthur too. Please say so to him and tell him that, in marrying my dearest friend, he and I must be dear friends also."

Then the tears did come, swiftly, like the ripple of the rain. On the table where she sat she put her head down and sobbed, paroxysmally, as sobs a child.

THE GENERAL SESSIONS

CHAPTER I

DISENCHANTMENT

“*I*L SEGRETO——”

Marie's voice rang out, clear and fluid, scattering notes through the room, filling it with them, charging the air with melody, then, like a chorus entering a crypt, it sank in diminishing accords and, sinking, died slowly away.

The *segreto* indeed! The secret of happiness was remoter now than when, under the teaching of the ex-first lady, she had first attacked the score. But her voice had improved. It was fuller, more resonant and ample.

Marie, too, had improved. In face and figure beauty had developed. Her manner was securer, her eyes more grave, her smile less frequent. The bud had blossomed.

In the process a year had gone. From high Norman downs she had watched the summer pass. Autumn had met her in the Elysian Fields. There the wolfish winter had approached. At the first bite there had been a flight to Havre, the return to New York. Now it was spring again. Through the open windows of the Arundel came the city's hum and with it the subtleties and enticements of May.

A year had gone. But there are years that count double. There are others so vast that in them you may have evolved a world, seen it glow and subside. The solitudes of space appal. The solitudes of the heart may be as endless as they. In those where Marie loitered a world had had its birth and subsidence, a world with gem-like hopes for stars, a world lighted by a sun so eager that its rays had made her blind. There had been aspirations, gorgeous and tangential as comets are. There had been the colorless ether of which dreams are made. For cosmic matter there was love. A year had gone. In it, these wonders had formed and fled.

Marie got from the piano. It had no secret to tell. But there was another which the year had revealed, a secret which, at first opaque and obscure, little by little had taken shape and changed from an impossibility into a monstrous fact. Marie had begun by disavowing it. She had disowned it, would have none of it. But disavowals cease. In certain conditions we get used to monsters. The soul makes itself at home with what it must. The monster to which Marie was accustoming herself was the knowledge that her lover had lied.

In departing with him from the den of the ex-first lady it was not merely with faith and trust, but with absolute certainty that marriage, if delayed, was only postponed; that a week, a month at the furthest, would see her his wife.

On the way she had stopped and wired to Gay street, telling her father not to worry, that she had gone to be married, that she would write to him soon.

Whether he had worried she could only surmise. But soon she had written, inclosing a photograph of Loftus, one which she had colored, an excellent likeness that displayed his chiseled features, wonderful eyes and thin, black mustache with a perfection of precision that was lifelike. Above it she wrote: "Marie's Husband." It would please her father, she was sure, and in the letter she told him prettily, in a little, cajoling way which he loved, that while, for the moment, he must not know where she was, yet shortly she was planning to come and surprise him—to surprise him more than he could ever imagine, and show him that he could be very, very proud of her, but prouder still, much, much prouder of the man she had married.

The plan, delightful to her, first the illness of her lover's mother, then the lady's absence from town, prevented her from at once effecting. Then, greatly to her uneasiness, she found that the plan must be yet further delayed. Mrs. Loftus had gone to her manor on the Hudson, where, her son declared, he could not take Marie "like that." Financially it was stupid to rush things. Gradually his mother must be prepared. Moreover, as preparation could be decently managed only in town, to which she would not now return until autumn, it would be a good idea to run over to Europe.

So spoke Royal Loftus. It was all false as an obituary. Financially he was entirely independent of his mother, who, at the time, was not at her manor,

but just around the corner and never better in her life. But Marie, wholly infatuated, quite willing to believe that the moon was made of green cheese if only he took the trouble to so inform her, accepted it all for gospel.

The delay, of course, was a deep disappointment. She felt it, and felt it acutely. But in Europe she supposed that people would not know, and would not care a rap if they did, Loftus hastened to assure her.

To his project, therefore, she yielded. Presently she was glad that she had. The journey itself was a joy. At the Arundel he had come and gone. Often she had been lonely. Often she had sat through hours that limped themselves away, waiting for him, waiting fruitlessly. But during the journey and after it, on the high Norman downs, always she had him with her. Therein was the joy.

The places, new to her and fragrant, to which he took her interested her very much, but very much, too, as accessories might. It was from him that their real charm emanated. He also enjoyed himself, but less rapturously, in a fashion more detached. He found time to busy himself with the news of the world, with menus, with wines—occupations which to her were extraordinary. Marie did not know what she ate; as for the world, it was sublimated in him, a fact which she confided to him—of which, if she had not, he would have been perfectly aware and which he accepted at first as but a proper tribute to himself, but which ended by boring him distinctly. An excess of anything disagrees with the best.

The first symptoms of indigestion declared themselves in Paris. They had there a large suite in a big hotel. So large was the suite that frequently Marie could not find Loftus in it. He was off, returning when he saw fit, refusing to be questioned, yawning at reproaches, but otherwise perfectly civil, agreeing with her that it was not nice to be left alone, yet leaving her alone whenever he felt like it.

On the Norman downs the fresh fragrance of life had put a higher color on her cheeks, marking them with the flush of happiness and health. But in this game of hide and nowhere to seek her face became pallid as the curious white sky which in autumn stretches itself over Paris. Then stealthily, like a wolf, winter approached. The cheerlessness of it Loftus hated, as all New Yorkers do. To Marie, however, it was welcome. It meant a return to the

Arundel, where she felt that the marriage so long delayed could not be further postponed.

The illusion was pleasant but not permanent. On re-emerging in the noise and sunshine of New York Loftus ceased to bother himself with the invention of excuses. He told Marie that his mother would not listen to anything of the kind, a statement which, while frank, was not exact. Mrs. Loftus had never heard of it, or for that matter, of the girl, and Loftus saw no reason whatever why she should. Yet if not frank, he was patient. Marie, on the other hand, took it all very hard. Humiliation possessed her. By day it confronted her, spectrally. At night it came to her, sat by her side, plucked at her sleeve, awoke her. It was a thing she could not get away from, could not forget; what is worse, she could not understand. It tortured her, and concerning it she tormented him constantly, displaying a persistence that was annoying and pathetic—the persistence of a child. It was as such that he treated it with yawning indifference, quite as though it were but a whim which, other things intervening, she would forget.

Other things did intervene. Among them was an adventure in Central Park. One afternoon a brougham in which she was driving crossed a victoria where sat a remarkably pretty woman with Loftus at her side.

Marie's eyes filled. Had he struck her he would have hurt her far less. When next she saw him she told him so. The idea amused him. He was not a ruffian, only a cad. Like the whim, he waved the little tragedy away.

"That was Mrs. Annandale," he announced unabashedly, "a very old friend of mine. I have known her all my life."

"Mrs. Annandale!" Marie exclaimed. "Not the wife of the Mr. Annandale whom you brought here last year?"

Loftus stared at her. He did not understand. Yet then, neither did she.

"Why," she continued, "you told me he was to marry a dark young lady."

"Yes," said Loftus, fumbling as he spoke for a cigarette. "But I told you also not to use that expression. Say girl or young woman. If you want to be fantastic, say young gentlewoman, but never young lady. You are right,

though. Annandale was to have married a Miss Waldron, but she threw him over and he married somebody else."

To Marie all this was inexplicable. She did not understand how a man thrown over by one girl could so speedily marry another. She did not understand, either, what Loftus could be doing with her. To her mind driving presupposed an intimacy which acquaintance might explain but did not excuse. The matter perplexed her, and not unnaturally. It is only through our own heart that it is possible to attempt to read the heart of another. In her heart Marie knew that nothing earthly could induce her to appear as intimate with a man as Loftus had with that woman. Yet, though she knew that, she knew also that many of her views, like many of her expressions, were not in tune with the tone of the set in which Loftus moved.

None the less a fact remained. To her other men did not exist. To him other women existed. However she tried to console herself with difference in breeding, that fact, remaining, pricked. It pricked perhaps the harder because of this particular woman's looks. The woman herself was hateful. How, she wondered, could Loftus drive about with her when, with herself, he would barely be seen.

And why wouldn't he? In those days Marie's whys were many. But at the end of every one of them the answer which she always found was that it was all because she was not his wife. Yet there always another why recurred. Why was she not what he had sworn she should be?

The possible disinheritance which hitherto he had imaginatively displayed had no terrors of any kind for her. On bread and kisses she would have lived with him joyfully in a slum. To luxury she was unused. That with which she was surrounded she would not have missed in the least. On the contrary, it had grown odious to her; it suggested a form of compensation the very thought of which was sickening. It was not for this that she had left Gay street, but for him and an honest name.

In the prolonged absence of the latter there were times when her soul seemed to slink into the obscurities of her being and swoon there for shame. There were times when she could not look at herself in the glass. Quite as often she had found it difficult to look at her servants.

After the episode in Central Park the increasing sense of degradation affected her so deeply that with a weary idea of preserving such self-respect as she might, summoning those servants she dismissed them—securing, meanwhile, from an agency a woman able to do what little was essential, a negress named Blanche who talked Irish.

When Loftus discovered what she had done he was for having the servants immediately back. He liked to have the girl entertain for him. He liked to have his friends come to the aviary and hear the bird sing. But Marie, with an air of determination that was new to him, refused.

"They do not respect me," she said. "I don't blame them for that. Nor can you. When we are married it will be different.

"When we are," she added with slow scorn.

CHAPTER II

THE MOTE IN THE EYE

A PHILOSOPHER has noted that at certain periods a great many stupid people have a good deal of stupid money. This condition, describable as plethora, is succeeded by another catalogued as panic.

The number of stupid people who at this time stalked the streets unchecked was phenomenal. Among them was Annandale. It was not a beggarly twenty-five thousand a year that he had, but fifty, with, in addition, more to come. This, though measurably satisfactory, was not brilliant. Not brilliant, that is, as Mrs. Price used that term. Still it was sufficient to remove him from the menagerie of paupers in which she had classed him. Assured whereof, Mrs. Price, pocketing further objections, gave in. Two months by the clock after the episodes at Narragansett she assisted at his marriage to her daughter. A little later Annandale took a house in Gramercy Park.

This house, leased fully furnished from November to June, Fanny selected. She liked the neighborhood. Annandale, whose bachelor quarters had, of course, been given up, liked it too. It was convenient. He had got an idea that he ought to have something to do. The something which he hit on consisted in going downtown every day and standing, in a broker's office, over a ticker. Such were the quantities of stupid money afloat that the ticker was very loquacious. It talked and talked, generally in jumps. As it jumped Annandale bought. As it continued to jump, he made. Whereupon he regarded himself as a born financier. It was an illusion which that year very many men shared.

But the illusion was agreeable to him. It was equally so to Fanny. It took him out of the way and induced pleasant dreams. He talked of drags and yachts. On fifty thousand a year these things are impossibilities. But Annandale, believing himself a born financier, believed, too, that the day

was not remote when they would solidify into facts. Pending which, Fanny, from her own carriage, distributed to Annette, Juliette and the rest of them such orders as she liked.

It was in this carriage that Marie had seen her with Loftus. Others also saw her. Fanny being a little more than a bride and Loftus a good deal more than a beau, the spectacle caused comment. There were, though, other things that the future had in charge which were to cause more. But among those who beheld the particular spectacle was Fanny's husband.

Annandale was in a hansom with Mr. Skitt, the broker in whose office he looked over the tape. As Fanny drove by, Annandale raised his hat, then, with a mimic which he meant to be humorously indignant, he shook his stick at Loftus much as though he were saying, "Aha! making up to my wife!"

Loftus entering into the spirit of the jest, ducked his head in feigned alarm.

"That's a deuced pretty woman," remarked Mr. Skitt when the carriage had passed.

"It is Mrs. Annandale," his client returned with some hauteur.

"Oh, beg pardon, I didn't know."

"Yes," Annandale resumed, "and that was Loftus, an old friend of mine."

"Any relation to *the* Loftus?" Mr. Skitt, glad that the subject was out of the way, inquired.

"He is *the* Loftus," Annandale, now entirely mollified, replied.

Others, however, took the spectacle less lightly. To Marie it was distressing. To Mrs. Price it was absurd. Mrs. Price had not seen it, but she heard of it. To air a few views on the subject she pounced in on Fanny the very next day. Loftus, however, was there at the time. She had to wait until he was gone. Then she let drive.

"Do you fancy," she asked fiercely, "that this is London? Do you?" she repeated and menacingly pulled off a glove. "Don't you know that you

cannot have men hanging about you, and of all men that man? Great heavens, if you wanted him you should have taken him at the start."

Fanny lit a cigarette, made a ring of smoke, poked a finger through it and in a sugary, demure little way which she sometimes affected, answered serenely: "At the finish perhaps I may yet."

"What!" cried Mrs. Price.

But from the door a servant was announcing Miss Waldron. The girl swam in. Necessarily, for the time being, the subject was dropped. Later Mrs. Price got back to it, but without notable result, without obtaining either any elucidation of Fanny's rather curious remark.

That though, with graver things, the future had in charge. Meanwhile Fanny, with nine servants and a housekeeper to run them, led the life of any other young society woman, the life of an *objet de luxe*.

This form of existence would have been quite to her liking if—Yet is there not always an If? A poet declaimed on the subject two thousand years ago. Times have changed, customs with them, but not the human heart. Barring great wealth and its fanfares and accompaniments, Fanny had enough to throw the average woman into stupors of envy, enough also to even satisfy her, if only instead of one man she had married another. Annandale was very nice. He had but one defect. But that defect was fatal. He did not happen to be somebody else.

This defect Fanny had fancied that she could overlook. She was young, therefore ignorant, and, in fancying that she could ignore that fatal defect, fancied also that she had the ability to order herself about, to command her nature and dictate to her heart. The fallacy is common. Many of us have entertained it and kept at it too until the discovery is made that the heart is a force which we must yield to or break.

Fanny became aware of this shortly after Loftus returned. There in her existence was the If. As a consequence, although Annandale was quite perfect to her, his perfection was as nothing to his one defect.

Of this defect Annandale was wholly unconscious. Yet, though he could not see the mote in his own eye, there was one in Fanny's which, though he

saw, he was unable to define. It is true on the mote question he was not an expert. A husband, particularly when he happens to be big and blond, seldom is. Then, too, the effect of the mote was odd. It affected Fanny's disposition. When he approached her he could not but notice that she became elusive. He could not but perceive that she was as afraid of a kiss as of a bee.

"What is the matter with you?" he inquired on one occasion when she appeared even more tantalizingly intangible than he had seen her yet.

"Women are the very devil," he muttered as, without answering, she moved yet further away.

The question, though, was very unreasonable. So at least Mrs. Price, whom he tried to take into his confidence, assured him with fine scorn. "The idea of a man asking his wife what is the matter with her!" she exclaimed. "A man ought to know. If he doesn't, how in the world can he expect her to?"

But that was before the episode with Loftus in the Park. Had Annandale gone to Mrs. Price then she would have been quite capable of putting a flea in his ear. That opportunity he neglected. Stocks were soaring. On paper he was making money hand over fist. He had no time to bother with women's whims. When men do have time for such things the time has passed.

Even then it had gone. One night early in May Fanny had a few people in, among whom were Loftus and Sylvia Waldron.

Sylvia, who long since had let bygones be bygones, was now as sisterly as ever with Fanny, and with Annandale on terms friendly and frank, an attitude which, as Fanny put it, "made it so easy, don't you know, all around." Yet then in putting it in that way Fanny may have been actuated by the fellow-feeling which makes us all so wondrous kind. With Loftus she was rather friendly herself.

That, however, by the way. During the dinner a telegram was brought to Annandale. It concerned the morrow's market and interested him considerably. As soon as he decently could he got away to confer with Skitt. Later the other guests began to go. But Loftus lingered. Presently he and Fanny were alone.

"How is the lady?" Fanny negligently inquired.

Her arms and neck were bare. Her dress, immaterial as cobwebs, was of starbeams' restful hue. About her throat was a string of opals. They were colorful, though less so than her eyes and mouth.

She was seated on a sofa. Loftus was standing. As always, he was superiorly sent out. Other men who got their things at the same places that he got his never succeeded, however they tried, in appearing half so well.

"Do you know," Fanny continued, "she has improved vastly since that day when I saw you trying to pick her up. How did you ever manage? Tell me."

Loftus, his hands in his pockets, shrugged a shoulder.

"And she is so delightfully disdainful," Fanny ran on. "In Central Park this afternoon she turned up her nose at me. It is a very pretty nose, Royal, did you know that?"

"I know that it is a bit out of joint," Loftus condescended at last to reply.

"Dear me! Fancy that! But then the course of true love never did run smooth."

Loftus assumed an air of great weariness. "Do drop it," he said. "You know very well that I have never cared for anyone but you."

"Oh, of course," Fanny promptly and pleasantly retorted. "I may have had a doubt or two about it. But when you put this lady in a flat around the corner, then, naturally, you convinced me. It was a rather circuitous way, though, to go at it, don't you think?"

Beside her on the sofa Loftus flopped. "Why do you always go back to that?" he asked, with the same affectation of weariness.

Fanny turned from him. "I don't seem to be able to get away from it," she answered, but less promptly and pleasantly than before. Her fair face had grown serious. From her eyes the bantering look had gone. "Besides," she added after a moment, "you took her to Europe, and that did seem a trifle steep."

"Would you like her to go back there?" Loftus tentatively inquired.

In and out from Fanny's skirt a white slipper, butterflyed with gold, moved restlessly. "I should have preferred that you had let her alone. It was not nice of you. It was not nice at all."

From him she had turned to the carpet. She was looking at it still. "I wonder," she presently resumed, "if you ever suspected how it hurt me." Pausing a bit she looked up. "But you have been so dense, Royal."

Loftus was about to interrupt. She checked him. "The first time I saw you I was just fifteen. That is eight years ago. Since then I can honestly say that until I accepted Arthur I had never thought of anyone but you. Never. Not once. Can you realize now how this affair of yours affected me? It hurt. If it had not been for that, do you suppose I would have taken the prince in the fairy tale? You were my prince."

"But," Loftus protested, "this affair, as you call it, came about only *faute de mieux, faute de toi*. Why cannot I—why cannot we——?"

Fanny checked him again. "No, we cannot. Two years ago you said the same thing to me. I forgave you then because I loved you. For the same reason I forgive you now. But, however I care for you, never will I be your mistress."

"Fanny——"

"No, never. If, as again and again you have told me during the past few months, you still care for me, either you must love me openly or I will not permit you to love me at all."

At the sudden horizon Loftus bent to her. "Let us go, then. In Europe we can love before all the world."

Fanny drew back. "Particularly before all the half-world," she answered with a sniff. "No. You misunderstand me. Perhaps, too, I misunderstand you. Let my hand be."

"Fanny, I will do anything——"

"It is rather late to say that. But if I were free now, what would you do? Would you repeat the invitation you have made?"

Loftus, his wonderful eyes looking deep into hers, answered quickly and sweetly, "I would beg you to be my wife."

Fanny straightened herself. "Then give that girl her congé, give her a dot too, send her abroad and let her marry some count."

"Very good, I will do so."

"When you have," said Fanny, "I will ask Arthur for a divorce."

"What?" And Loftus, with those wonderful eyes, stared in surprise. He was in for it, let in for it, was his first impression. Yet at once, on looking back, he realized that Fanny was incapable of trick of any kind. "But," he objected, "supposing he refuses?"

"Then I will apply."

"But you can't, you see. He is good as gold."

"Oh, I don't mean here. I mean out West."

For a moment Loftus said nothing. Even in the West, he reflected, divorce took time. Yet then, reflecting, too, that it would be very gentlemanly of Annandale were he to go there and leave the coast free for him, he smiled and remarked, with what seemed astounding inappositeness, "I have been selling short."

"Ah!" said Fanny longly. "And what of it?"

"Unless the market turns I shall be out, God knows how much!"

"But what of it?" Yet even as she spoke she understood. "Fiddlesticks!" she exclaimed with a gesture of annoyance. "I sha'n't care if you haven't two cents."

To this Loftus had no chance to reply. Annandale came lounging in.

"Do you know what I have done?" he collectively and blandly inquired. "I told Skitt to buy me, at the opening, 1,000 Atchison and 1,000 Steel.

Now I would like a quiet drink."

Loftus stood up. "I am going in the Park for a quiet smoke. But I thought you had sworn off."

Annandale tugged at his cavalry mustache and laughed. "I haven't touched a thing for nearly a year. But on a night like this, when the whole town is mad, I think I might have a drop. Stop, dear boy, won't you, and have one with me? No? Well—" And, accompanying Loftus to the door, he whispered to him there, "My compliments to Miss Leroy."

"Don't forget, Royal," Fanny called after him, "that you dine with us on the ninth."

CHAPTER III

THE GATES OF LIFE

IN her sitting-room at the Arundel Marie sat. It was nearly midnight. Hours before she had dined. Since then she had wandered from one room to another, from one chair to another, wondering would Loftus come. Sometimes he did. More often he did not. She never knew beforehand. It was as it pleased him. Always the uncertainty irked her. But on this evening it was particularly enervating. She had reached the gates of her endurance. She could stand no more. She must pass through them, pass or fall back, where she did not know, but somewhere, to some plane, in which, though life forsook her, at least its degradation would be foregone.

At first, in the old days, when he met her in the ex-first lady's den, it had seemed to her that life would be incomplete without him. Then it had seemed that with him it would be fulfilled to the tips. Subsequently the long train of disenchantments had ensued. In Paris he had pained her greatly. There, after a series of those things, little in themselves, but which, when massed, become mountainous, she had been forced to consider not her love for him but the nature of such love as he had for her. In him there was a reticence which perplexed, depths which she could not reach. At times his silence was that of one to whom something has happened, who is suffering from some constraint, from some pressure or from some long illness of which traces remain. At others, it had exasperated her, it made her feel like a piano, on which, a piece played, the cover is shut. She had seemed to serve as a pastime, nothing more; a toy which now and then he took up, but only because it was there, beneath his feet. Yet even then she was not quite unhappy. Even then she had faith. She believed in him still. Hope had not gone.

Hope has its braveries. Its outposts patrol our lives. Until death annihilates it and us, always beyond is a sentry. The sentry which she still discerned was the promise he had made. Latterly it had not been much of a

sentry. It had far more resembled a straw. But it was all she had. She had clung to it. Hope indeed has its braveries, but it has its cowardices as well.

This hope, ultimate and forlorn, she knew now was craven, mated to her degradation, born of her shame. If it were to be realized the realization must delay no more. She was at the gates. She must pass through. On that she had decided. When Loftus came she would tell him so. She would tell him that she would work for him, slave for him, envelop him with her love, pillow him on her heart. Though he lost his wretched money what would it matter to her and how should it matter to him? She could sing him if not into affluence at least into ease. Tambourini, with whom until recently she had studied, had told her not once, out of politeness merely, but again and again that in her throat was a volcano of gold. With Italian exaggeration he had called her Pasta, Alboni, Malibran, predicting their triumphs for her. If Loftus would make an honest woman of her those triumphs would be for him. But as she told herself that she told herself too that such triumphs he would prefer to avoid. He should have, though, the chance. If he rejected it she would go. And of its rejection she had little manner of doubt. But the chance he should have, yes, even though she knew beforehand that with his usual civility—a civility which she had learned to hate—he would hand it back. She could see him at it. She could see his negligent smile. That smile she had learned too to hate. Always she loved him to distraction, but sometime she hated him to the death.

From Loftus for a moment her thoughts veered to Tambourini. The week previous suddenly, without warning, he had told her torrentially that he adored her. He was a good teacher. Yet, of course, after that she had been obliged to let him go.

But now her thoughts were interrupted. At the table where she sat she started, her head drawn abruptly in that attitude which deers have when surprised. In the door without had come the fumble of a key and, in the hall, she caught the almost noiseless tread of her lover. As he entered she got from her seat. Loftus had his hat on. He took it off, put it down on the table and taking a cigar from his pocket lit it at the chimney of a lamp that was there.

At the conclusion of the operation he looked at her. Her dress was canary. From the short loose sleeves lace fell that was repeated at the neck. There a yellow sapphire had been pinned. As he looked at her, she looked at him.

"I have something to say to you, Marie," he began.

With an uplift of the chin she answered: "And I, Royal, have something to say to you."

"The usual thing, I suppose. Well, shy a teacup at me if you like, but spare me a scene."

As he spoke he seated himself. "Marie," he at once resumed, "I shall have to take my mother up the Hudson shortly——"

The girl interrupted him. "Does Mrs. Annandale go too?"

The man's cigar had gone out. He relighted it. "No," he replied, "the last time I saw her she said something about going West."

"Ah!" Marie exclaimed, and immediately with that curious intuition which women that really love possess she added, "to Dakota?"

"Perhaps," replied Loftus with a puff. The surety of the shot amazed him, but of the amazement he gave no sign. "Perhaps, though I do not remember that she said just where she did intend to go." He drew in a large mouthful of smoke, which leisurely he blew forth. It circled about her. She moved away. "Oh, excuse me," he said, "I did not mean——" The girl made a gesture of indifference. "You see," he began again, "the point is just here. My mother is not well. She rather wants me with her this summer. In the circumstances I thought you might like to go abroad."

Marie, through half-closed eyes, cautiously peered at him. "Without you?" she asked.

Loftus nodded.

"For good?"

To this Loftus made no answer. Provided she went, though it were for bad, he did not much care.

Marie, who had been standing, crossed the room and recrossed it. A year before she had suggested the kitten. Where that had been the leopard had come. In her movements were the same supple ease, the same grace and alertness. Suddenly at the table where he sat she stopped, rested a hand on it and bending a little looked him in the face.

"Liar," she muttered. "Liar! I know and so do you. Yes, I knew it almost from the first, but, though I knew it, I tried as hard to deceive myself as you did to deceive me. You never intended to marry me, not for a moment, not even at the moment when you called God to witness that you would."

Her hand had gone from the table, from it and him she turned away.

Loftus, who at the arraignment had retreated a full inch in his chair, called after her. "It is untrue; what I said, I meant."

Marie turned back. "Then if you meant it, marry me this night. If you have any honor, any whatever, a spark of it, you will; if not——"

She paused and looked at him. It was not this at all she had meant to say. She had meant to entreat him, to picture what their life might be, to tell him of her enveloping love, and that failing, to go, but to go without words, without reproaches, without suffering that which had been between them to be marred by vituperation and, so marred, to descend to the level of some coarse intrigue. But something, his manner, the manifest lie about his mother, the apparition of that other woman, battenning on nerves overwrought had irritated her into entire forgetfulness of what she had meant to do and say.

The pause Loftus noticed. What was behind it he misconstrued. "Don't mind me," he encouragingly interjected. "Threaten away. It is so nice and well-bred. Yet I must be allowed to say that while I did intend to marry you, the intention has been rather weakened through just such scenes as this. Though, to be frank, it is not so much that I object to scenes as it is that, if scenes there must be, I prefer to make them myself."

At the humor of that Marie ran her nails into her hands, dug them in. Without some such moxa it seemed to her that she might take and hurl the lamp at him, fire the place and, fate favoring, be calcinated with him there.

"And now that I have been frank," he went on, "let me be franker. You and I have ceased to be able to hit it off. The blame for that I will, if you like, assume."

Then he too paused. But not at all because he did not fully know what he meant to do and say.

"Marie," he continued, putting a hand in a pocket as he spoke, "in the past year we have been more than friends. Friends at least let us remain. Friends do part, and for awhile we must. Your voice, like yourself, is charming. If I may advise, go and study abroad. Though if you prefer remain here. But, of course, whatever you do you will need money. I have brought some."

In his hand now was a card case which he offered her. She took it, looked at it, opened it, then moving to a window she raised the sash and threw the card case into the night, yet so quickly and unexpectedly that Loftus had no time to interfere.

"That is an agreeable way of getting rid of twelve thousand dollars," he remarked.

Yet, however lightly he affected to speak, the action annoyed him. Like all men of large means he was close. It seemed to him beastly to lose such a sum. He got up, went to the window and looked down. He could not see the case and he much wanted to go and look for it. But that for the moment Marie prevented.

"If it were twelve times twelve million," she exclaimed, "I would do the same! Oh, Royal," she cried, "don't you know it is not your money I want; don't you know it is you?"

Loftus did know, but he did not care. The flinging away of the money was all he could think of. It was an act which he could not properly qualify as plebeian, but which seemed to him crazily courtesanesque. He returned to the table and picked up his hat. "I am going," he announced.

Marie sprang at him. "Is that your answer?"

He brushed her aside. She saw that he was going, saw too, or thought she saw, that he was going never to return, saw also that now at last she was at the gates.

"My God!" she cried. "My God!"

So resonant was the cry that Loftus turned, not to her but to the window. He closed it. But already the cry had passed elsewhere.

From regions beyond a fat negress waddled hurriedly in. Her eyes rolled whitely from the girl to Loftus and then again to the girl.

"Are you sick, miss?"

"Go away," said Loftus, "there is nothing the matter."

"Nothing?" exclaimed Marie. "Nothing!" she repeated in a higher key. "Nothing!" Then, visibly, anger enveloped her. "Do you call it nothing to be cheated and decoyed? Nothing to have faith and love and be gammoned of them by a living lie, by a perjury in flesh and blood? Is that what you call nothing? Is it? Then tell me what something is?"

At the moment she stared at Loftus, her lips still moving, her breast heaving, her small hands clenched, her face very white. And Loftus stared at her. In the vehemence and contempt of her anger he did not recognize at all the kitten of the year before. But it was very vulgar, he decided.

That vulgarity Blanche complicated at once. "What has he done, miss?" she asked, her hands on her hips.

"Done?" Marie echoed. "He has made me drink of shame. Now, tired of that, he is going."

"Not to leave you, miss?"

"To leave me for another woman."

"Then hanging is too good for him."

Loftus gestured at the negress. "I say," he called. "Did you hear what I told you? Go away and hold your tongue."

Blanche's eyes that had rolled whitely before were rolling now not merely whitely but wildly.

"I won't go away, sir. I won't hold my tongue, sir. I am as good as you, sir. I have a son that's better nor you, sir. He wouldn't treat a lady as you have her, sir. Staying away from her as you have, sir. Making her eat her heart out, sir. No, sir, I won't hold my tongue, sir."

And Blanche, mounting in paroxysms of indignation, shouted: "For the Lord's sake, sir. Hanging is too good for you, sir. You ought to have your ghost kicked. Yes, sir."

"Oh, hell!" muttered Loftus between his teeth, and turning on his heel, he stalked out, flecking from his sleeve as he went an imaginary speck.

CHAPTER IV

THE RETURN OF THE YELLOW FAY

IN Fanny's drawing-room the next evening, at six minutes after eight, Loftus appeared. Although tolerably punctual, others had preceded him.

On a sofa with Fanny was Sylvia Waldron. On another sofa were Mrs. Waldron and Melanchthon Orr. Annandale, who seemed to have lost flesh, was standing in the middle of the floor.

"How are you?" he asked as Loftus entered.

"And you?"

"They did me," Annandale answered. "Atch., U. P., St. Paul, Steel, I had the list." As he spoke he mopped himself. Then in confidential aside, he added, "It has affected my stomach. It is as though I had a hole there. Will you have a sherry and bitters?"

Loftus moved forward to where Sylvia and Fanny sat. Fanny gave him a finger; Sylvia, a little distant nod. She was dressed in white. About her neck was a string of pearls. Fanny was in a frock of tender asparagus green fluttered with lace, very cool to the eye and cut rather low.

"I hope Arthur isn't hurt much," said Loftus.

"Are you?" Fanny asked.

"No. I have been selling. Today I covered. It was not easy, though. Everybody was crazy. I have never seen a panic before."

"It will be a generation before you see another," Orr, from across the room, called out.

At the further end of the room Harris, Annandale's former valet, since promoted to the position of butler, appeared, smug-faced and solemn, in

silent announcement of dinner.

For the time being the subject was abandoned, but presently when at table all were seated it was resumed.

"It will cost the country \$50,000,000," said Orr. He was at Fanny's left. At her right was Loftus.

"Well," said Annandale, emptying a glass of Ruinart, "I am glad I don't have to produce it." Emptying another glass he added, "I have produced all I could."

"I think I do not quite understand," said Mrs. Waldron, who led a highly unspeculative life and seldom saw the evening papers.

Orr and Annandale both hastened to enlighten her. Ever since the Presidential election there had been a boom in the Street, a soaring market in which the whole community, down to and including messenger boys and chorus girls, had joined. On this, the ninth of May, it had, in the slang of the Street, just "busted." Since the great black day of a generation previous, never had there been such a crash, so many landed gentry, so much paper profit sunk into such absolute loss.

In the flow of talk Fanny turned to Loftus.

"How is the lady?"

Loftus, whose mouth was full of jellied consommé, did not answer for a moment. Then he made a slight gesture. "She has gone."

"Already?"

"I had your orders!"

Fanny looked at him wonderingly. "How did she take it?"

"What difference does it make? She has gone. Is not that sufficient?"

"For you, no doubt. But for her! No; really I am sorry. When you told her that you loved her I am sure she thought you meant forever. I am sure, too, that you meant for a week. It is a shame to treat a girl like that and then turn her loose."

Loftus had begun to busy himself with some fish. He put his fork down. "But, confound it, you told me to."

"Did I? I forgot. Besides, you are not usually so obedient."

Loftus turned to his fish. "It seems to me that there is rather a change in the temperature. Isn't there?" he asked.

"But, Royal, I cannot help feeling sorry for that girl. I cannot help feeling, too, that if you can get rid of her in this lively fashion you might do the same with me."

"In that case it only shows what a simpleton you are. If I have had anything to do with her at all it was only because I couldn't have anything to do with you."

"Well, hardly in that way. But you could have asked me to marry you."

"I have since."

"Say, rather, I asked you."

"Anyway, the other evening it was settled. If now you have changed your mind——"

"Regarding you my mind will never change. I shall speak to Arthur tonight."

"What's that?" called Annandale who, from the other end of the table, had caught the mention of his name. "What's that?"

"We were talking stocks," Loftus answered. "Do you know how money was today?"

"I know it was beastly tight."

"And that seems to me," Fanny with one of her limpid smiles remarked, "such a vulgar condition for money to be in."

"Did I hear you ask," Orr inquired, "how money was today? It was sixty per cent."

"Dear me, Melanchthon," Mrs. Waldron exclaimed. "I think I must get you to speak to the Trust Company. They only give me three. A mouse could not live in New York on that."

"The time is not distant," said Orr, "when the population of New York will be exclusively composed of mice and millionaires. Nobody but plutocrats and paupers will be able to live here. Already it is little more than a sordid hell with a blue sky. I can remember——"

Orr ran on. He had the table. In the impromptu which ensued other conversation was swamped. But during it, for a second, Loftus had Fanny's hand in his. It clasped it and in clasping thrilled. It was the first time in her life that she had permitted herself—or him—such a thing. It was the last.

Sylvia, happening at the moment to turn that way, could not help seeing what was going on. She colored and looked at Annandale.

During Orr's impromptu he had been attempting with plentiful champagne to fill the hole of which he had complained.

Later, the dinner at an end, the women gone, the hole still unfilled, he called for whisky and soda and monologued plaintively on the disasters of the day. As he talked he drank. But the monologue, which was becoming tedious, Harris interrupted. Mrs. Waldron had sent in to say that she and Miss Waldron were going, and would Mr. Orr be so good as to see them home.

At this Annandale got up. With the others he made for the room beyond. There, shortly, the guests of the evening departed; husband and wife were alone.

"Do you know, Fanny, how much I have lost today?" that husband began.

"No, Arthur," that wife replied. "Nor do I know that I particularly care. There is something more important to me than money just now. I want a divorce."

"Eh?" Annandale had been walking up and down the room, but at this he stopped short. He did not seem to have heard aright. "Eh?"

"Eh?" Fanny repeated in open mimic. "Yes, I want a divorce."

"A divorce?" Munching the syllables of the word, Annandale put a hand to his shirt front. "From me?" Had Fanny asked him to make good the fifty million loss to the country which Orr had mentioned his bewilderment could not have been more sheer.

He stared at Fanny. She was nodding at him. Influenced by that motion of her head, slowly, almost laboriously, he sat down. There the disasters of the day fusing with the alcohol of the night blent with the demand and bewildered him still more.

"What an odd thing to want," he said at last. Then rallying he added, "You must be j-joking. Yes—really, for you know you can't tell me why."

To this, Fanny who had been eyeing him narrowly, retorted severely: "I wonder are you in a condition to have me tell you anything at all?"

At the imputation the poor chap, after the fashion of poor chaps in similar shape, flared indignantly. "There is nothing the matter with me," he protested. Though very much mixed, he managed for the moment not to appear so. "Nothing," he reiterated.

"Then Arthur, to be quite frank, we are not suited to each other. If you will give me a divorce it will be nice of you. If not I shall go to Dakota and get one."

Annandale passed a hand over his forehead. He did not in the least understand what all this was about. Then suddenly the fumes of wine disclosed a retrospect of incidents garnered unconsciously, memories of Fanny and Loftus, the sense of her increasing aloofness, the knowledge of his constant presence. These things made pictures which he saw and, seeing, inflamed. At once, in answer not to her but to them, he got from his seat, pounded violently on an étagère and cried with the viciousness of drink: "I'll shoot him! I'll shoot Royal Loftus for the dog that he is!"

"Beg pardon, sir." Through the lateral entrance to the drawing-room Harris emerged, a tray in his hand. "A necklace, sir. It was under the dining-room table where Miss Waldron sat, sir."

Annandale strangled an oath. He glared at Fanny, glared at the man, glared at the pearls, took the latter, thrust them in his pocket, motioned to

Harris, strode from the room, went upstairs, then down and out from the house, slamming the door after him with a noise in which there was the clatter of musketry and the din of oaths.

The night was black yet full of stars, the hour homicidal and serene. Annandale strode on. Before him was the park, about it a fence of high iron and within phantasmal peace. He did not notice it. He was wondering angrily what he would do, how he should act.

Had he been sober he would have known at once. When in his sphere of life a woman wants to go, it is a man's mere duty to open the doors, open the windows, run ahead, get a divorce and bring it back to her on a salver. Had he been sober he would have realized that. He would have recognized too the propriety of Fanny's frank request. After little more than five months of marriage it was perhaps precipitate. Yet considered simply as a request it was, in the world in which he moved, more common than the reverse.

Ordinarily he would have realized that. What is more, he would have realized that what Fanny had said was true. They were not suited for each other. When people are not so suited it is best that they should separate. But people that have bowed when they met might just as well bow when they part. In the life known as polite big words and little threats have long since gone out of fashion.

All of which ordinarily Annandale would have known. He was essentially urbane, of a nature far more inclined to inaction than anger. Ordinarily, he would have accepted the situation, without joy, no doubt, but certainly without raising the roof. Whereupon, having so accepted it, he would have turned in and gone to bed.

But alcohol plays strange tricks. It affects manners and memories. It affects, too, the imagination. Annandale was drunk. The Yellow Fay that lurks in liquor awoke in him the manger dog. He told himself that he was being robbed. And of what? The wife of his bosom! And by whom? His nearest friend! The outrage and the villainy of that loomed, or rather, the Yellow Fay aiding, seemed to loom so monstrously, that, beside it, the disasters of the Street dwindled into nothing, lost in the sense of this wrong.

It was damnable, he decided.

Putting a hand in a pocket his fingers encountered a string of pearls. It was not that which he was seeking. Besides, he had forgotten them. But finding them there it occurred to him that he ought to restore them at once. Circling the park he entered Irving Place and rang at Sylvia's door.

There, instead of the usual if brief delay, the door opened at once. Orr was coming out. Beyond in the hall Sylvia stood. Orr looked at Annandale, wondering what the dickens he was after. But Annandale brushed by. Orr passed on. Annandale entered the hall.

As the door closed the light revealed to Sylvia what Orr in the semi-obscurity of the stoop had not observed and which, had he observed, would, in view of an anterior episode, have induced his return.

But Sylvia saw. In face and manner his excitement was obvious. Mindful of that episode she feared that he was again in his cups. Yet immediately, though for a moment, a question which he asked reassured her. She understood, or thought she did, why he had come.

"Did you know that you had lost your pearls?"

Instinctively the girl's hand went to her throat.

"Here they are. They were found somewhere. In the hall, I think."

"Thank you, Arthur. This is very good of you. But tomorrow would have done."

She did not ask him in and this omission he did not appear to notice. He looked about the hall and then at the girl. At the look her fear returned.

"Did you know about Fanny and Loftus?" he suddenly asked. "They're going to elope." As he spoke he leaned back heavily against the door. "I shall kill him," he added thickly.

Sylvia wrung her hands. "Oh, Arthur, you have been drinking again. You promised that you never would."

"I shall kill him," Annandale stubbornly repeated.

"Oh, don't say such things," the girl pleaded. "Don't say them. Go home."

Annandale turned sullenly, opened the door and looking back, muttered, "I have no home."

Closing the door after him he started down the steps. They were few and wide, easy of descent. But they had become unaccountably steep. He caught at a rail. It steadied him. He stood there a moment. Then, a bit uncertainly, he zigzagged on.

CHAPTER V

EXIT FANNY

“**M**URDER!”

On the morrow, through the thick streets newsboys were shouting the word engagingly, as though it were something nice. For further temptation they bawled, "In Gramercy Park!"

Orr was leaving his office. It was four o'clock. He was on his way home. But the name detained him. Murder in Gramercy Park was a novelty which no one aware of its sedateness could comfortably resist. He bought an extra. There, for his penny, in leaded type it stood. In ink, appropriately red, meagre details followed. As these sprang at him, mentally he bolted. Other purchasers were absorbing them pleurably. A good old-fashioned crime is so rare! Then, too, of all crimes murder in Gramercy Park is rarest. Yet when in addition the victim is a man of fashion what more would you have for a cent?

To Orr the information was excessive. It concerned Royal Loftus, who, the paper stated, had been found early that morning, near a bench in the park, doubled in a heap, a bullet through his handsome head.

No clues, no arrests. That was all. But was it not enough? To Orr, while excessive it was also incredible. Mechanically he read the account again. On his way uptown he bought other papers, less colorful but equally clear. Loftus had been identified. There was no mistake.

But the incredibility of it persisted. A man young, rich, handsome, without apparently an enemy in the world or an idea in his head, to be done for like that was a matter which Orr could not immediately digest.

He tried, however. In the effort he reached his house. There a telephone message awaited him. It asked would he please come to Irving Place.

Presumably it concerned the murder. He went at once.

In the sombre parlor Sylvia stood.

"You know, I suppose," he began. Seeing that she did he added, "It is very odd."

Sylvia interrupted him. "There is worse."

"How worse? What do you mean?"

"Fanny was going to run off with him."

"With Loftus?"

Sylvia nodded. Her face, always pale, now was white.

"But," Orr expostulated, "you don't fancy that Annandale——?"

"No." The monosyllable fell longly from the girl. "No," she repeated. "But others may."

"I don't see why. There is nothing to go on. Is there though?"

Sylvia did not directly reply. She looked down at her hands and then at her cousin. "I think," she presently said, "that he must have learned of it last evening after we went away. At dinner I am sure he had no suspicions."

"Had you any?"

Sylvia raised her eyebrows. "I don't know," she remarked, "whether when you were going from here you noticed him particularly, but in the hall he had told her that he would shoot him."

Orr sniffed. "That is rather awkward."

"Then almost at once he went. But where?"

"Have you heard from him since?"

"No, and it is for that reason I sent for you. Won't you go to him and let me know?"

But Orr did not like the errand. It seemed to him that Annandale might be the man. "That, too, is rather awkward," he objected.

Against the objection Sylvia pleaded. Manifestly she was nervous. "If you won't go," she said at last, "I shall."

"Oh, well, if you put it in that way," Orr reluctantly replied, "I suppose I must."

"And you will come back?"

"As quickly as I can."

There is a line of Hugo descriptive of the earnestness with which people gape at a wall behind which something has occurred. Orr recalled it when he reached Gramercy Park. At one end of the park was a great crowd staring at the high fence of iron. It was behind the fence that Loftus had been found. The place itself was directly in front of Annandale's house.

On entering that house Orr was shown into the drawing-room. Shortly, from a room beyond, Annandale appeared.

"You have heard, have you not?" he asked. "But come in here."

Orr followed him to the other room. In it was a sideboard on which decanters stood.

"Will you have something?"

Orr thanked him. Annandale helped himself to a liquor. As he did so the decanter clicked against the glass and, as he raised the glass, Orr saw that his hand shook.

"It is very strange," said Annandale, repeating almost the words which Orr had used to Sylvia. "I had no cause to love the man, but——"

"I know," Orr interrupted. "My cousin told me. But if I were you I would not talk of it. She seemed worried lest you might."

Annandale put down the glass. He was quite flushed. "But," he exclaimed, "she does not suspect me!"

"Of course not. On the contrary. But then the fact suggests a motive which, coupled with any threat you may have made, might, in the absence of other clues, made a prima facie case, which to say the least, don't you see, would be nasty."

"Damnably so!" Annandale muttered dumbly. Then, raising the glass again, he threw out: "But what nonsense! A little after you had all gone from here I went to your cousin's——"

"Yes. I know you did. I met you on the stoop."

"Did you?" said Annandale with marked surprise.

"Why, yes. Don't you remember?"

Annandale passed a hand across his face and sat down.

"Don't you remember?" Orr reiterated.

Annandale shook his head.

"But you remember where you went afterward, don't you? Did you come directly here?"

Annandale made no answer.

"Can't you tell me?" Orr asked. "Or is it that you don't wish to?"

On a mantel opposite the sideboard a clock was ticking. For awhile in the room only that ticking could be heard.

"Can't you?" Orr asked again.

Annandale stood up. It was as though the question had prodded him. He moved to the sideboard. But Orr got in his way.

"Don't drink any more. Try to think."

"I can't," said Annandale. He moved back and sat down. In his face the flush had deepened. It looked mottled. He himself looked ill.

Orr, a hand extended on the sideboard, beat on it a brief tattoo.

"This is rather tedious," he said at last. "It is only a little less than a year ago that you had a similar lapse. Oddly enough, it began as this has, at my cousin's house. But we must try to keep her out of the matter. Were she asked what you said it might be embarrassing, don't you think?"

"What I said? What did I say?"

Annandale as he spoke looked so abject that Orr feared that he might go to pieces there and then. Humanely he changed the subject. "Of course, whoever did it will be nabbed. Meanwhile, it is only to prevent any stupid suspicions that I venture to advise. By the way, have you any idea who could have done it?"

Annandale again ran his hand across his eyes; then, looking up at Orr, he replied: "Not one—unless he did it himself."

"H'm. Well, yes. That might be. But what does Mrs. Annandale think?"

"She does not know. Or, at least, she did not at noon. I heard it then from Harris. I told him not to say anything to her. Shortly after, as I understood, she went out, to her mother's, I believe, though, of course, since then——"

The sentence was not completed. Fanny was entering the room. Orr had always admired her very much, but never so much as then. She was dressed in black, which is becoming to blonds, and richly dressed, he afterward thought, he could not be sure for he lacked the huckster's eye. But his admiration was not on this occasion induced by her looks, though a woman's looks, when she has any, are always notable if unnoticed factors. His admiration was caused by the way she took things.

With the air of one inquiring the time of day she glanced at Annandale and asked, almost with a lisp: "Why didn't you shoot me?"

Orr turned to Annandale. He was rising. From his face the flush had gone. He was lurid. The word lurid is used because it is more dramatic than its synonym, ghastly. And here was drama, real drama, in real life.

"Fanny, you don't think that I——"

Drama, real drama, is an enjoyable rarity. Orr longed to stay and see it out. But, obviously, anything of the kind would have been worse than

indiscreet. He picked up his hat.

"Fanny," Annandale repeated, "you can't think——"

"Oh," she interrupted, "you see you made it quite unnecessary for me to think at all. You told me beforehand. Wasn't it considerate?" she added, turning to Orr.

"But I did not mean it," cried Annandale. "As God is my witness——"

"I am a witness," Fanny interjected, interrupting him again. But the interruption was effected without abruptness, without apparent emotion, sweetly, almost lispingly, with a modulation of the voice that was restful to the ear. "And," she added, in the same sugary, leisurely way, but raising now a slender finger gloved in white, "I will swear to what you said."

At this Orr swam, or tried to swim, to the rescue. "Surely," he protested, "you would not do that?"

"Wouldn't I?" she answered, addressing Orr and speaking in the same smiling, seductive fashion that she had to Annandale. "Wouldn't I, indeed! Really, believe me, you are quite in error."

Annandale fell back in the chair from which he had arisen. "Fanny," he gasped, "I did not know a woman could hate like that."

Fanny smiled afresh. "No? Is it possible? But, then, perhaps, you never knew how a woman could love."

She gave a little nod. It was as though she were adding, "Take that."

Orr was buttoning a glove, preparing to retreat. She turned to him: "Don't go. Stay and have a drink with Arthur. He looks as though he needed one."

She moved back.

"Yes, stay," she continued. "I am going." Once more the slender finger gloved in white was raised. "Arthur Annandale, never willingly will I see you again—except in court. For to court I shall go, if only to see you sentenced."

At that, at the splendid ferocity of it, Orr looked at Annandale. When he turned to look at Fanny, silently, no doubt smilingly, she had gone.

CHAPTER VI

WHAT THE PAPERS SAID

THERE are occasions when speech is an intrusion and sympathy an affront. An occasion of this kind coincided with Fanny's exit. On the mantel the clock still ticked. Otherwise there was silence in that room.

Orr, finishing with his glove, made for the door. "If I can be of use," he said, "let me know."

Annandale stood up. "You can," he answered. For a moment he hesitated. He seemed lost and dizzy. Then, with an effort, he got himself together. "Tell Sylvia it is not true."

Orr passed out. But instead of returning at once to Irving Place he went up the steps of an adjoining house. There he was told that Mrs. Loftus could see no one. He had not expected to be received. But he felt for her, felt, too, how she must feel.

That a Loftus should die would, he knew, be enough. But that a Loftus should be murdered, and that Loftus be her son, there was something which, Orr thought, might perhaps overwhelm her. And, as Orr afterward learned, Mrs. Loftus was then sitting, her attendants about her, absently and ceaselessly shaking her head. Nor did the motion of it ever cease. She was palsied.

Before Orr learned of that other things supervened, primarily fresh extras. These of course were indicated. The imagination of the public had been stirred. Of all things mystery affects the imagination most. Here was one agreeably heightened by subsequent editions announcing the projection of the eternal feminine.

Then those that read these sheets felt that they were getting their money's worth. But the feeling was accentuated when one of the papers gratified

them with a picture of a girl who they saw was an exceedingly fetching young woman and who they were informed had vanished from her residence, the Arundel, where she was known as Miss Leroy.

Her connection with Loftus, a connection which the neighborhood generally understood, was shown with reportorial ease. With the same ease it was established that he had been with her the evening preceding the night of his death. Bag and baggage the next morning she had flown.

That fact in itself was prodigiously interesting. A young and pretty assassin, what! It was quite like fiction. It was almost too good or too bad to be true. Besides, the picture displayed a girl not merely pretty but quasi-ideal, a face infinitely delicate, disdainful yet sad.

Orr saw the picture and saw too that, while perhaps rather flattering, it did not resemble Marie in the least. As a matter of fact it was an art editor's fake. But that, of course, the public did not know and being fed on fakes would not have cared if it had known.

Then more mystery followed. What were her antecedents? Who were her people? Whence had she come? No one could say. What alone could be said was that a year previous Loftus had taken for her an apartment at the Arundel, where she had resided in a manner otherwise genteel, though with, latterly, but one servant, a negress named Blanche.

At the time the police were as much interested in the servant as the public in the girl. The latter in departing had had the forethought to leave the former behind, and, from her, information relevant and irrelevant was obtained.

To Mr. Peacock for instance, one of the district attorneys, Blanche related that at dinner her mistress liked sweetbreads and sorrel with, now and then, a chocolate souffle.

Mr. Peacock was a florid man with the face of a cupid, the guile of a fox and the voice of an ogre. "I don't care for that," he told her.

"Nor I," Blanche agreeably replied.

"I mean," said Mr. Peacock, "that I don't care about her victuals. She was in love with the dead man, wasn't she?"

"I guess so," Blanche with profound if unconscious psychology replied. "She was always scrapping with him. She——"

"Tell me," Peacock interrupted, "what happened the last night he was there."

"It was awful. He was trying to get rid of her. He wasn't much and I told him so, but he was all she had. When I first came to her she said she was an orphan, that she hadn't anybody anywhere, that they were all dead."

"She may have meant," Peacock with even profounder psychology interjected, "that she was dead to them."

But this insinuation Blanche resented. "She could be lively enough when she liked."

"Who came to see her?"

"Mr. L."

"No one else?"

Blanche shook her head.

"Whom did she write to?"

"How do I know?"

"Didn't you ever see her write to anyone?"

"Well, the last night, after he had gone, she did write a letter and gave it to me to post. When I came back——"

"Whom was it addressed to?"

Blanche shrugged her shoulders. "I don't know, I can't read. When I came back she was crying and getting a few duds together and I helped her."

"Did she tell you where she was going?"

"Sure. To Europe. I saw her off the next day. She went in the sewerage."

"In the steerage, do you mean?" asked Peacock. "But she hadn't any money? Didn't Loftus give her any?"

"She wouldn't take his money, she threw it back at him. She would not take anything he had given her. She left a room full of dresses and jewelry. They are at the Arundel now. She told me——"

"Did you see her on board?"

Blanche nodded.

"Mightn't she have left the ship before it sailed?"

"Yes, if she had wanted. I wouldn't have stopped her. But I stood there and as the ship went out she waved her little hand at me and—and——"

"Do you remember the ship's name?"

But now Blanche was weeping profusely.

"No matter," said Peacock. "I can find out."

He did. He found out, too, that when Loftus was shot Marie Leroy was on the high seas. And there he was without a clue. What is worse, there was the eager public quite as deficient.

Yet though the clue which the girl represented was necessarily abandoned, there remained a theory. There remained even two theories. The first was robbery.

Loftus, when found, had about him not so much as a five-cent piece. The wad of bills which men of means are supposed to carry, and which, having credit everywhere, they never do, was absent. Absent too was the customary watch. The precise use which a man of means and particularly of leisure can have for a watch the police and press did not stop to consider. The absence of watch and money suggested a theory. That was enough.

The theory, however, like all theories, had its defects. Loftus had been found within the park, a few feet from the fence. The shooting might have occurred from without, but unless the assassin had a key or a ladder or a

balloon or wings he could not possibly have got in to go through him. Eliminating ladder, balloon and wings, a key the assassin could not have had unless he were a resident in the neighborhood, the agent of a resident, or a caretaker of the park itself. People of this order are as eliminable as balloons and wings.

The theory therefore had its defects. It had, though, this in its favor—the lock of one of the gates might have been picked. It had something else in its favor. It suited the Loftus clan.

Mrs. Loftus, though childless now, was not otherwise alone. Behind her were all the Loftuses, a contingent of relatives socially eminent, ponderable politically, super-respectable, synonymous with the best. To them the death of Royal, however dismal, was not disgraceful—not disgraceful, that is, assuming that it was a footpad's work. On their escutcheon it put a mourning band but not a blackening blot. That blot they feared. They had cause to. The dark, donjuanesque story about Marie Leroy might have been followed by other stories darker still, dirtier if possible, that would begrime them all.

The footpad theory they accepted therefore at once. Had they been able, had circumstances favored them, had the man, for instance, been shot in some way or in some place unknowable to the police, they would have arranged to have had him die decorously, if suddenly, of some genteel complaint, of appendicitis or pleuro-pneumonia. Then there would have been no stories, no extras, no pictures, no notoriety, no fear of that blot.

The fear subsisting, they accepted the footpad theory, glad to find it ready-made, declining to consider any other, desisting from further effort, hushing the matter as well as they could, refusing, though urged, to offer a reward.

Yet, though the theory suited them it did not satisfy the public. It was too tame. They demanded something else. That demand the press, as was its duty, attempted to supply. Through methods unfathomably vidocquesque, the young gentleman connected with the *Chronicle*—one of the most enterprising sheets—discovered more about Loftus dead than Loftus living could himself have known. They discovered that in the panic he had dropped a bagatelle of five millions, and announced that he had committed

suicide. But while at the autopsy it was not demonstrated that Loftus could not have shot himself, at the inquest it was shown that the obligatory instrument had not been found. Even to vidocquesque young gentlemen the suicide theory ceased then to appeal.

But that only deepened the mystery. To dissipate it and, at the same time, to display an endearing pro bono publicanism, the *Chronicle* offered a reward of five thousand dollars for such information as would lead to the arrest and conviction of the assassin.

Immediately there was a clue.

It was Harris who produced it. Under the guidance of a reporter he was led to the office of the *Chronicle*, where the young gentleman turned him over to the managing editor quite as though the clue were his own.

"Here, Mr. Digby, is a party that knows who shot Loftus."

Mr. Digby was a small man with a big beard, very well dressed, remarkably civil.

"Yes," he said. "And who did?"

"Mr. Arthur Annandale."

Mr. Digby smiled. He did not believe it. But it stirred him pleasurably. The *Chronicle* stood for the people. Annandale represented the predatory rich. Besides, it was in front of Annandale's house that Loftus had been found. At once he saw scoops, extras, headlines. Also the possible libel. Meanwhile at a glance he had taken Harris in.

"You are in his employment?"

"Yes, sir," Harris, amazed at such perspicacity, replied. "I am the butler."

"And you saw him do it?"

"No, sir, but I heard him say he would."

"When?"

"The night Mr. Loftus was shot."

"To whom did he say it? To you?"

"To Mrs. Annandale, sir."

"Oho! How was that?"

"It was after dinner, sir. I was in the dining-room. The second man was with me cleaning up. On the floor under the table he found a necklace. I took it in through the hall to the drawing-room. Mrs. Annandale was there with Mr. Annandale. When I was just at the door I heard him say, 'I'll kill Loftus.' I went in and gave him the necklace."

"But why?" Mr. Digby interrupted. "What was he going to kill him for? What was the motive?"

"Mr. Loftus had just gone, sir. He had been dining with us. He and several others."

"Well?"

"Well, sir, when I was in the hall I heard Mrs. Annandale say as how she wanted a divorce."

"Aha!" exclaimed Mr. Digby. "The plot thickens. Was she in love with Loftus?"

"She was that, sir. Anyone could see it."

"Then what?"

"Mr. Annandale went upstairs, came down again and went out."

"Did you attach any importance to his going upstairs?"

"He went to get his pistol, sir."

"Oho! He had a pistol, had he?"

"Yes, sir. A 32-calibre. I bought it for him myself."

"That is a very good story," said Mr. Digby, who was a judge.

CHAPTER VII

HELD WITHOUT BAIL

THE theories and clues in the now celebrated case Orr related to Sylvia one after another as they reached him through different channels. To the story of Marie Leroy she listened, her face averted, without a word. The footpad theory she dismissed. It was absurd. But the suicide theory impressed her. Even to her mind it was not logical. Loftus was too cavalier, too supremely indifferent, to make it plausible. On the other hand, it disposed of the whole matter. Moreover, as she put it to Orr, what is suicide but the sinful end of a sinful life? "Who knows," she asked, "what sudden remorse he may have experienced that last night when he was alone there in the park?"

"Suicide," Orr had replied, "is assassination driven in. It is the crisis of a pre-existing condition, a condition wholly pathological, one which remorse may complicate but which it cannot directly induce. There was nothing whatever the matter with Loftus. He may have been sinful, as you express it, but he was sound. Besides, the man had no more conscience than a tom cat."

Nevertheless Sylvia clung to the theory. She had no other. Hopelessly she hoped that time would verify it. But she suffered acutely. Orr's account of Fanny's attitude frightened her. What frightened her most was the tale that Harris told. The latter she learned from the press.

Meanwhile she had gone to Mrs. Loftus. The old lady had not recognized her, or, rather, had mistaken her for someone else. "My boy is away, Fanny," she said, her head shaking as she spoke. "He is away. I don't know where." She began to whimper.

Sylvia, too, had wept. It was pitiful. The proud, arrogant woman Fate had reduced to a cowering crone.

Meanwhile also Sylvia had tried to see Fanny. But at the hotel where Mrs. Price had been stopping she was informed that both were away. An address was given her to which she wrote. For a time no answer came. Finally from a different address Mrs. Price replied saying that Fanny was ill and asking that their whereabouts be a secret. In spite of the little threat Fanny was not anxious to be subpoenaed.

But that was much later, long after Harris had told the story which Mr. Digby declared to be very good.

This opinion, editorial and offhand though it was, was immediately and officially indorsed. For the story had a double merit. It supplied not merely a clue but a case. A very clear case, too. There was the antecedent threat, the opportunity, the instrument, everything even to the motive which was reasonable enough. The inevitable ensued. Annandale, arrested, was held without bail.

At the news of that Sylvia shuddered. Time touched her. Her eyes ringed themselves with sudden circles. The shuddering passed, but the rings remained. She became whiter, harder, more resolute, divining dimly that somewhere, somehow, there was a duty to be performed. What the duty was to be the press disclosed. Against Annandale was public opinion. There he was convicted instant. At the injustice, or what seemed to her the injustice, of that she revolted.

But Orr, whom Annandale had immediately retained, dosed her with a platitude. "Public opinion be hanged," he said. "What is it but the stupidity of one multiplied by the stupidity of all. *Vox populi, vox stulti*. The majority is always cocksure and dead wrong."

In spite, though, of general stupidity there were people sufficiently indulgent to accord Annandale the benefit of extenuating circumstances. The reputation of Loftus, which left rather a little to be desired; the coupling of his name with that of Annandale's wife; the report that for his sake the latter had been preparing to leave her husband; the further report that for the convenience of both Marie Leroy had been shipped abroad; these things reduced the case in the minds of the indulgent to what the French call a *crime passionnel*, and which, as such, is psychologically and even legally defensible.

But French views are not our views. Besides, admitting their validity, that validity was impaired by the attitude which Annandale assumed. He omitted to admit, and thereby for the time being waived the right to plead, the circumstances advanced in his justification. When charged had he said, "Oh, yes, I did it, and so would you or any other man," there, don't you see, might have been an excuse. But not a bit of it. Up and down he denied that he was the culprit.

A denial such as that has, though, its merits. It puts on the prosecution the burden of proof. Moreover, if you have done anything you should not have it is only common sense to say that you have not done it, to say it in spite of facts, in spite of evidence, in spite of everything and everybody. For if you own up, there you are, while if you don't then no matter what is advanced you may succeed in raising a doubt and in planting it among the jury. But in this case the denial was more serviceable than ordinarily it might have been for the reason that thus far no one had been produced who could say they had been about while Annandale was at it.

These points Orr set before Sylvia. The sophistry of them displeased her. She did not like it, and said so.

"It will get him off, though," Orr confidently replied. "Unless," he hastened to add, "a witness to the act itself should pop up. Then, barring a miracle, he is a goner. But otherwise I will get him off. It may take a year or two, but I'll do it."

"I don't want you to get him off," Sylvia scornfully retorted. "I want him vindicated."

"You see, though," Orr with unruffleable calm continued, "if a witness should pop up, a witness, let us say, whom I cannot discredit, vindication will be difficult. It will be difficult to make twelve imbeciles in a pen believe that when Annandale shot Loftus——"

"He never shot him," Sylvia cried.

"My dear cousin," Orr with the same unruffleable calm pursued, "the beauty of your faith is wonderful. You must come to court and inject it among the jury. Faith that used to move mountains may yet move men. But I doubt it. I doubt that it could make them credit the incredible, the fact

patent to me as it should be to you, that though Annandale shot Loftus he was, and for that matter still is, totally unconscious of it."

"He never shot him."

"My dear Sylvia, forgive me. He did. Though what I can say for him and, if needful, I shall say, is that he did not mean to. The intent is the essence of crime. There was no intent here. Of his own free will the man would not hurt a fly. But that night he was not a free agent. He was not even a conscious agent. Of all the cells of his brain but one was awake. In that cell was an incitement inciting him to kill. When the other cells awoke that one cell fell asleep. It has been dormant since then. Only through hypnosis could it awaken. In the interim he knew no more than a somnambulist what he was about. His condition, though, was not somnambulistic, it was a case of psychical epilepsy, a malady superinducible in certain natures by various poisons, of which anger is one and alcohol another."

Orr paused. He looked at his cousin. Incredulity, something else besides, was in her face. He affected not to notice it. "Now," he ran on, "go with a story like that to the average jury. Of course, if need be, I shall have experts, the very best experts, to substantiate it. But the prosecution will have other experts, experts who will be just as good, to deny the possibility of any such thing. In that event it will be only a pleasure to mix them up a bit and to show by their own testimony that they know no more than the law—I don't say allows but—pays them for. Do you mind if I smoke?"

They were seated in the sombre parlor in Irving Place. Meditatively Orr lit a cigarette. Meditatively Sylvia contemplated him.

"Would it not be better," she presently asked, "to show that Loftus committed suicide?"

"Yes, in the event that the pistol is found. It is rather late, though, for that."

Sylvia bent forward. "Melanchthon," she said, "I have heard you say—have I not—that everything is possible?"

"Indeed you have and you will hear me again."

"Then why not ask Miranda?"

Orr looked about for a *cendrier*; finding one he put his cigarette in it. "You mean the medium. Do you know, I would in a minute, were it not that it will be a long time, perhaps years, before she or any other spook could call Loftus up. When a man is snuffed out as abruptly as he was, he is so stunned and confused that it is quite a while before he can sufficiently collect his wits to reply to any communications from these latitudes. It is tedious that it should be so. The spirit world needs remodeling. But there you are. By the way, where are you to be this summer?"

Sylvia made a gesture. She did not know. It was then June. Fashion had fled. Fifth avenue was empty. The town was an oven. In that oven the girl would have preferred to remain. But at the preference her mother had rebelled. Against Newport Sylvia had rebelled also. She was in no mood for its gaiety. Finally a little place on Long Island suggested itself. Ultimately there they went.

It was in this place that Sylvia heard from Mrs. Price of Fanny's illness. Fanny had disappointed her exceedingly. That she could have so much as contemplated the step which she had in view seemed to Sylvia unspeakable. Her threat, too, in regard to testifying against her husband was in the circumstances but a flagrant avowal of love for the other man. Yet, for that love, how had she been punished! Perhaps now she repented of it. Perhaps now in her illness she needed someone to whom she could unburden her heart. At the thought of that Sylvia wrote at once to Mrs. Price asking might she not come to her. But to this Mrs. Price replied that Fanny after an attack of nervous prostration was now down with typhoid, though with every prospect and assurance of recovery. When she was up again, then, if Sylvia would come, it would, Mrs. Price added, be nice of her.

There is a saying trite yet true that we should hasten to cherish those whom we love lest they leave us forever before we have loved them enough. There is another saying less true and more trite that of those that do leave only good should be said. To Sylvia presently these sayings recurred. Two days after the receipt of the letter from Mrs. Price she read in the papers that Fanny was dead.

The paper fell from her. For an hour, which passed as only such hours do pass, incomprehensibly, without consciousness of time, she sat, still and stricken.

Through raveled skeins of thought of which the tangled threads refused to wholly straighten, she blamed herself for all that had occurred. Not indeed for Loftus. The man, his life, his death, everything concerning him was abhorrent to her. Of him, other than that pity which can mingle with disgust, she had no concern whatever. But when she should have stood most steadfastly by Annandale she had turned from him. Had he not implored her forgiveness, and did she not know that all that God requires is that forgiveness be asked? But no. She had been too proud and that pride she had nursed until it was too late, until Annandale had married, with this double tragedy for climax.

It was all her fault, Sylvia told herself. All her own. Had she not abandoned Annandale he would have had no cause to threaten, Fanny would have lived, there would have been no shock to debilitate her and leave her a prey to disease. Fanny's death was at her door.

Companioned by these thoughts for an hour she sat, still and stricken. When she aroused herself it seemed as though before her two figures stood. One said "I am Duty," the other, "I am Grief."

A message from the latter she imparted to Mrs. Price. Many messages not similar but cognate that lady received. Fanny had been very popular. Her popularity the rumor connecting her with Loftus had necessarily impaired. The arrest of her husband for shooting the man, and for shooting him, as it was generally understood, on her account, impaired it still more. In the upper circles the scandalous may be relished, but it is not indorsed. Had Fanny lived, those circles would have visited their displeasure in not visiting her at all. But death is a peacemaker. It comes and where there was war is a truce. By the worldly Fanny was immediately forgiven and by them as quickly forgot.

It was in July that she died. In September Sylvia returned to town. At once she asked Orr to arrange for her a visit to Annandale in the Tombs.

To that he objected. "You know," he said, "that you will have to testify against him."

"Against him!" Sylvia repeated with an air of utter surprise.

"Why, yes. He was here that night. He has admitted it. You will be asked to tell what he said."

In Sylvia's eyes both disdain and acquiescence surged. "And what of it?"

"But," Orr exclaimed, "there is the threat. He made it in the presence of Harris and repeated it in yours."

"He did nothing of the kind."

"But you told me so."

"You are mistaken. I know nothing of any threat whatever."

"Oh," said Orr with a bow, "this is magnificent."

But he meant heroic. In view of the girl's nature it was certainly that. What is more, it was helpful. With Fanny out of the way, the only one left that could testify to any threat was Harris, and Annandale's word was quite as good as his, better even, for the value of the servant's testimony would be weighed in scales in one of which would be the *Chronicle's* dollars.

Orr said as much to Sylvia, but apparently his views did not seem to her very novel. It became obvious to him that she had thought it all out for herself.

"Besides," she presently and irrelevantly continued, "I am to blame. If I had not been stupid with him, there would have been nothing to threaten about."

That, Orr thought, was rather putting the dots on the i's. But he did not mind. He was pleased with her. His respect for her had increased. Had she been the kind of a cousin to permit such a thing there and then he would have kissed her.

Yet some reward he felt was her due. As a result the interview which she asked he presently arranged. Under conditions which to her were as tragic

as they were humiliating she saw Annandale in the visitors' room at the Tombs. The room itself was not absolutely appalling, and though there was a keeper present, he was quite out of earshot, very oblivious, extremely civil and, parenthetically, handsomely paid.

Orr awaited her at the door. When she rejoined him her eyes were wet.

Orr looked at her. A little tune occurred to him. "Sylvia, Sylvia, I'm a-thinking—" But after all, he reflected, Fanny is dead.

Instantly the girl reddened and very distantly, her head in the air, announced, "We are betrothed."

"Ah," said Orr, "ah, indeed! The engagement will be rather long, I fear."

"Oh, Melanchthon, don't say that. Arthur is as innocent as you are. I know you don't believe it, but——"

Orr interrupted her. "It is not a question of what I believe. Independent of your interest in the man he is my client. I owe him a duty. That duty is to get him off, or to do my best to."

"I know you will," Sylvia fervently replied; "I feel it. So does Arthur. Besides, the only one we have to fear is Harris."

Orr smiled grimly. "Harris, I understand, is not very well."

"Not well? What do you mean?" the girl wonderingly inquired.

"I mean," he enigmatically answered, "that next week when I have him on the stand I propose to give him a little medicine."

Then he smiled again, grimly as before, with an air of personal satisfaction.

CHAPTER VIII

THE DEFENDANT TO THE BAR

"H^{ATS} off!"

Through the great white room the cry vibrated, followed instantly by another:

"Hear ye, hear ye, all ye having business with the Court of the General Sessions of the City and County of New York, draw near, give attention and ye shall be heard."

Within the Bar, restless as hyenas awaiting their prey, roamed the district attorneys. Against that Bar, crouching there, were Orr and his associate counsel, restless too, but prepared to spring. To the rear were reporters, the flower of newspaperdom, handsome young men dressed to the ears in resplendent collars and astounding cravats. Back of them were the spectators, a solid mass, ladies of every degree except the high one and, with or without them, men whom you would recognize as first-nighters, others whom you would not recognize at all. To the right of the Bar were witnesses for the prosecution, experts in various matters of which gastronomy evidently was one. To the left was the jury, and above, beneath the amber panoply of the Bench, the Recorder sat, an ascetic Solon.

The atmosphere of the room, high ceiled, close packed, was Senegambian. Without you could see, within you could feel, the heat and eagerness of the autumnal sun.

"Arthur Annandale to the Bar!"

Into the court, as though it were a theatre, the defendant strolled, perfectly groomed, the Tombs pallor on his face but none of its dust on his coat, an air of tranquil boredom about him. At his heels was a keeper. He shook hands with Orr, sat down beside him, turned and gave his hat to the

keeper, turned again and looked over to a gated inclosure at the right of the Bench where, in a sort of proscenium box, Sylvia sat with her mother.

The entire settings were those of a play. With this difference, it was real, a drama of mud and blood without orchestral accompaniment. After months of preparation, after days of talesmen baiting, on this Indian Summer forenoon the curtain was rising. The jury it had been a job to get. A full hundred were examined, cross-questioned, challenged and rejected before the dozen were boxed. When the last, the twelfth, a cadaverous individual, was accepted the stage was set.

"May it please the Court; Mr. Foreman and gentlemen of the jury."

With three bows and these rituals, Peacock opened for the State, outlining the case of the People, describing the crime, detailing the motive, summarizing the evidence, expressing the wish that the jury would believe the defendant innocent until his guilt had been proved, but declaring that, personally, for his own part, of that guilt he was thoroughly convinced.

Before he had finished Orr was at him. "I object to the District Attorney prejudicing the jury against this gentleman, my client."

That gentleman did not appear to heed. From Sylvia and her mother he had turned to look at the spectators, from them to fabulous beasts that climbed the fluted columns on the walls.

The objection was not sustained.

"And I object to Your Honor's ruling," Orr with a bulldog look threw up at the Bench.

Peacock proceeded. "There, gentlemen, is the crime, there too, the motive. To finish the picture evidence will be adduced."

He sat down. Then getting up, he called the first witness for the People, the Gramercy Park caretaker, who had found the body. The witness was succeeded by others, by the policeman on the beat, by the coroner's physician, by experts and servants.

By turn Orr took them in hand. With some he was curiously perfunctory. Of the caretaker, a meagre old man, with shift eyes, who appeared very

uncomfortable, he asked but four questions.

"When you found the body what did you do?"

"Ran and got the policeman, sir."

"Where did you get him?"

"On Lexington avenue and Twenty-third street, sir."

"Did you find him at once?"

"No, sir, I had to hunt a bit."

"Between the time you found the body and the time you got back how many minutes would you say had elapsed?"

"About ten or fifteen minutes, sir."

"That's all," said Orr.

It was not much. Yet with the policeman, a fat man with a red face and a blue nose, he was even briefer.

"When you reached the park with the last witness, how did you get in?"

"Walked in, sir," the man answered with a grin.

"The gate was open was it?"

"Yes, sir."

"That will do," said Orr.

It was not much either. But with other witnesses, notably with the experts, he fought, he fought with them, fought with Peacock, fought with the Court, would have fought with more had there been more to fight, fought pertinaciously, step by step, reducing testimony to nothing.

Meanwhile the court-room shimmered with silks. Wanderers from Fifth avenue who never in their lives had been in the General Sessions before begged and badgered their way there. It is great fun to see a man tried for his life. But when you have known him, when in addition elements

supersensational blend like a halo about him, what more could be decently asked? Yet one thing disappointed. It was regrettable that the prisoner was not in chains, that he could sit there and yawn with every appearance of being at a matinee, a keeper for lackey behind him.

Otherwise the fun, if not fast, was furious. Peacock would ask a question, the lips of a witness would part but before more than a fraction of a syllable could issue Orr would hold him up, hold up the prosecution, hold up the Court. Generally he was overruled. But no overruling abashed him. He arose from opposition refreshing. There were times when Sylvia thought him bowed to the earth, utterly routed, hushed for good. But not a bit of it. At the moment when his ammunition seemed exhausted and his defeat assured, from an arsenal of books before him he pulled weapons wherewith not merely to renew the fight but to win.

In the course of one objection he was commanded by the Bench to sit down. He protested. The Recorder declined to listen to him further, reiterating the order that he be seated. Then with the air and manner of a little boy sent for misbehavior from the room, Orr half turned, hesitated, turned back, and through the exercise of guile unique and his own, succeeded in re-engaging the Court in conversation, protesting his respect, denying his contumacy and presently he was continuing the very objection because of which he had been told to sit down. He did sit down, but long after, when he was ready, when he had succeeded in having his say and his way. Then when at last he did sit down it was with an air of mastery that would have become Napoleon at Marengo. At the moment he was not a lawyer merely, he was an actor, quasi-Shakespearian, a compound of irony and good humor, Falstaff and Mercutio in one.

All this, however, was, to vary the metaphor, but the preliminary canter. That Loftus had been killed was shown and admitted. But it had not been shown nor was it admitted that the defendant was the man. This defect a star witness was to repair. The star was Harris.

Yet, though a star, he looked ghastly. Whether ill or not, he was at least ill at ease. The smug, household-servant air had gone. He seemed to have come from turmoils in Tatterdemalio. He was bruised, dirty, unshorn. But the story which he had brought to the *Chronicle* he repeated, with

embellishments at that. After retailing the tale, precisising the motive and elaborating on it, he declared that the love of the defendant's wife for Loftus was common talk—evidence which, though hearsay, Orr indifferently let pass.

Then, after identifying a pistol as the property of Annandale—an exhibit marked A which Peacock had already tried but, held up by Orr, had not wholly succeeded in fitting to the crime—Harris swore that on the night of the murder, at five minutes after twelve, in the room which he occupied at the top of Annandale's house and which overlooked Gramercy Park, he heard a shot; that going to the window he looked out, that he could distinguish nothing, but that going then to the hall he heard someone coming in the house and looking down saw the defendant enter.

"Ha!" said Orr, taking him in hand, or rather, by the throat. For he made no attempt at ordinary amenities. He questioned him ferociously, with an air of personal hatred, with an air of saying, "Damn you, I have got it in for you now."

"What is your name?" he asked.

"Richard Harris, sir."

Orr pounded on the table in front of him. "Your name! Your name! I want your name, not something that you have made up like the rest of your rubbish. How many times have you been in jail? You were once employed in Hill street, Berkeley Square, by the Duchess of Kincardine. When you absconded from there, where was it that the police caught you? Answer me."

From behind the rail objections exploded like shell. But through the running fire of them Orr held his own, sandbagging the man with one charge after another, charge of theft, charge of forgery, but particularly of boasting the week before, in a Sixth avenue saloon where grooms and footmen congregate, that he could testify to anything that he was paid for.

From ghastly Harris turned vermilion. The flush retreating left him livid. Had the fluted columns with their fabulous beasts fallen on him he could not have been more limp. At one question he swayed like an animal hit on

the head. At another he hissed like a snake. There were times when he tried to hide from view. It was a curious example of the biter bit.

"That's all," said Orr with tigerish cheerfulness at last.

He had done him. He had given him the medicine. He had more in reserve. Peacock meanwhile had once jumped at Orr, his fist raised. Once he gave him the lie direct. Once he accused him of suborning. But Orr in sandbagging the witness with one hand, had another free for the prosecution. He was gluttonish, giving as good as was sent, very often better.

The Recorder, dismayed at the slugging, protested. "A human being is on trial for his life. I cannot try a case where only counsel are heard."

Immediately Orr supplied him with a diversion. One after another witness for the defense scaled the stand, sleuths from over seas, experts and servants.

In his corner before them Orr prowled. At the witnesses for the prosecution he had roared, sometimes he had bounded at the Bar, sometimes when a move of his succeeded he raised his right hand and looked at it as though surprised that it was not blood red. But now with his own witnesses he was serene, entirely calm, refreshingly civil.

That civility awoke in Peacock the hyena. The first witness Orr produced, a man who, as it afterward appeared, had had a rough and tumble with Harris that morning in the corridor, he partly devoured. What was left of him he sent to the Tombs. As fast as witnesses could be produced he ate them up. It was terrific. You could not help feeling that there are safer places than the witness stand in a murder trial, that you ran the risk of being killed yourself, talked to death if nothing worse.

"Don't go at him like a common scold," Orr engagingly pleaded at one stage of the game. "Why browbeat and bully a witness as you do?" he expostulated at another. "That's all, my friend," he said to one witness, "and let me apologize for the District Attorney's remarks." From his tone and manner never in the world would you have thought him the man who, but a little before, had so thoroughly sandbagged Harris.

Meanwhile questions coarse as oaths, answers frank as sword thrusts, clashed and resounded. One and all Orr's charges were substantiated. The testimony was damning to Harris, infecting everything he had said. From behind the rail Peacock volleyed and thundered. But truth when you get at it is a stubborn thing. So far as Harris was concerned there it stood and there too, during the production of it, Orr stood, quite like an Angora lapping milk. You could hear him purr. The eyes of Sylvia glistened like mica. Now and again Annandale laughed outright.

It is always insufficient to be innocent of a given charge. You must appear so. Annandale did not. Alternately he was bored and buoyant. But not dejected, never depressed. He did not seem to feel that his life was at stake. That is the attitude of the habitual ruffian. But sentiment was veering. Public opinion is a wave that thinks, thinks again, changes its mind, volatile as a woman. At the opening everybody knew that Annandale was guilty. Now nobody was quite so sure.

The Recorder caressed his beard. "I think," he announced, "that I will give the jury a recess."

CHAPTER IX

THE TWELFTH JUROR

TUMULTUOUSLY the session was resumed. At the door was a riot. There a squad of police fought back surging nondescripts clamoring for admission, fighting for entrance to the continuous show. A woman fainted. Another had her gown torn off. One man retired with a blackened eye.

During the recess Orr got for a moment with Sylvia and Mrs. Waldron. "Aren't you hungry?" he asked.

Sylvia took his hand and pressed it. In her eyes was victory, in her face delight. "I never knew before how Protean you are. You have won."

Orr tossed his head. "Not by a long shot. Besides, there is the jury. Eleven look imbecile and the twelfth looks ill. There is no telling at all what they will do or will not. But aren't you to eat anything?" He turned to Mrs. Waldron. "Aren't you hungry?"

"Very," said the lady, "but I can't do a thing with Sylvia. I——"

She would have said more, but the jury had filed in. The judge was entering, preceded by the cry "Hats off!"

Orr slipped back to his corner, to which Annandale, with his matinee air and the keeper for usher, had already returned. For a moment Orr bent to him, then to his associates but briefly. Bending again to Annandale he told him to take the stand.

The move, wholly unexpected, unusual, almost exceptional in murder cases, created an impression that was excellent, a sense of admiration for the fearlessness of the defense. From the prosecution came low growls of content. They were to be fed at last. In anticipation they licked their chops.

But the excellence of the impression dwindled. In the direct, Annandale denied, of course, that he had committed the murder, denied that he had ever contemplated it, swearing that to the best of his recollection he had made no threat at all.

"To the best of your recollection," Orr repeated after him. "Now please tell me, had anything occurred that night to impair your memory in any way?"

"Well—er—yes. Yes. I had been drinking."

"Had you any animosity toward the deceased?"

"Toward Loftus? None whatever. On the contrary, he was my best friend."

Peacock jumped. "I ask that that be stricken out."

Quietly Orr continued: "Had you known Loftus long?"

"All my life."

"Was he a friend of yours?"

"An intimate friend."

Orr turned to Peacock. "Your witness."

Peacock jumped again. "You say that on the night of the murder you had been drinking. Were you drunk?"

Paternaly the Recorder looked over and down. "The witness need not answer that unless——"

Annandale interrupted him. "I am much obliged to Your Honor, but really I have nothing to conceal. I was drunk, deplorably so."

"Habit of yours, is it?" Peacock snapped.

Annandale took a monocle from a pocket, screwed it in his eye, looked through it at Peacock, smiled at him, with an air of fathomless good fellowship, answered: "Dear me, no. Is it one of yours?"

"Oho!" cried Peacock, pocketing the insult but pouncing at the point, "you were drunk on this occasion only. Got drunk for it, did you?"

"No," Annandale blandly and confidentially replied. "You see, don't you know, it was the day of the panic. I had dropped a good lot of money—a good lot, I mean, for me—and, as the saying is, I tried to drown my sorrows."

"But you found that they could swim, didn't you? Now, tell me, among these sorrows was not the greatest the one to which your former butler has testified, your late wife's desire for a divorce in order that she might marry Loftus? Is it not a fact that she told you so, and that you then said, 'I'll kill him, I'll kill Royal Loftus like the dog that he is'?"

"I recall no such conversation."

"What, then, was the nature of the conversation that passed between you and your wife on this particular evening?"

"I don't remember."

"The conversation and the threat to which your butler has sworn may therefore have occurred without your now recalling it. Is that not so?"

"Everything is possible, you know," Annandale answered with a phrase unconsciously borrowed of Orr. "But I doubt it very much for the reason _____"

"Here," interrupted Peacock. "I don't want your doubts or your reasons or your haha airs. I want answers from you, direct answers. Where did you go and what did you do after your threat?"

To this Orr objected. A wrangle ensued. Orr was sustained. Peacock reconstructed his question. Annandale answered that he had gone to Miss Waldron's, but that he remembered nothing else.

"Is this yours?" Peacock suddenly asked, producing the pistol marked exhibit A.

"Probably," said Annandale, looking, not at it, but at the ceiling.

"That's all."

Annandale got from the stand. Others succeeded him there, experts for the defense, men who recited their qualities and degrees as though they were eating truffles to the sound of trumpets. One after another they testified that liquor can ablate memory partially, wholly; can ablate it regarding events antecedent and subsequent to a rememorated point between; can, moreover, leave the subject in a condition apparently normal yet actually in a state of trance.

"Do you really regard these people as experts?" Peacock with pitying contempt asked of Orr. Then at once in rebuttal were other experts, equally pleased with themselves, humorously disposing of psychical epilepsy, affecting to regard it as a medicolegal myth. Among the spectators the usual jest circulated. The mendacious were subdivided into liars, damned liars, expert witnesses. Yet there you were. But not Orr. Tortuously he involved the deponents in helpful contradictions, smiling at them, at Peacock and the jury, smiling with an air of saying "You see what confounded idiots these imbeciles are."

But the session was closing. One more witness remained to be called.

"Miss Waldron, will you take the stand?"

With the charming manner of the thoroughbred New York girl Sylvia circled the room. It was refreshing to see her, refreshing to hear the way in which she corroborated what Annandale had said.

"But," objected Peacock, "you had just gone from his house; what did he go to yours for?"

"To restore a string of pearls."

"Did he repeat to you anything that he had said to his wife?"

"Had he attempted to I should have refused to listen."

"Was he drunk?"

"I cannot say. I have never seen anyone in that condition."

"Did he make any threats regarding Loftus?"

"A gentleman does not make threats."

"Miss Waldron, I will thank you to answer me directly. Did he or did he not?"

"He did not."

"You swear to that?"

"I do."

It was perjury, of course. Yet if a girl may not perjure herself like a lady for the man she loves things have come to a pretty pass. That idea apparently struck Peacock.

"Prior to the defendant's marriage you were engaged to him, were you not?"

"I was."

"Are you engaged to him now?"

Very prettily and gracefully, without embarrassment, rather with pride, Sylvia answered: "I am."

"That's all," said Peacock. "The State rests." But as he said it he looked at the jury and sighed, sighed audibly, much as were he adding, "You may judge the value of her testimony from that."

The resting, however, was but figurative. In a moment the summing up began, a summing which, at first passionless as algebra, dealt with technical points.

"Gentlemen," said Peacock turning again to the jury, "the evidence in this case is of the kind known to you perhaps as circumstantial. Evidence of this nature can lead and often does lead to a conclusion more satisfactory than direct evidence can produce. Circumstances cannot lie any more than facts can. Unless we resort to them it is in vain that we attempt to detect and to punish crime. Crime shuns the light of day. It seeks darkness. It courts secrecy. The assassin moves stealthily. He calls no witness to see him shoot

his victim down. If you wait for an eye-witness you grant impunity to crime. It is true, and probably you will be so told by counsel for the defense, that there are cases in which the innocent have been convicted. Yet if men have been erroneously convicted on circumstantial evidence, so have they been convicted on direct testimony also. That is not, though, a reason for declining to accept such testimony. The possibility of error exists alike. But because men may err do they refuse to act? Because wheat may be blighted does the farmer refuse to sow? No, gentlemen. Until we have means of knowledge beyond our present faculties we must accept this kind of evidence or grant practical immunity to crime."

The exordium concluded, Peacock warmed to his work. What he said he seemed to literally tear from his mouth. It was an arraignment not delivered but hurled, headlong, with the force and rush of a cavalry charge. Before it Orr's points sank overwhelmed. To replace them with others of his own Peacock made new ones, evolving them with a fire and lucidity that was pyrotechnic. They were like bombs exploding before the jury's eyes. He arraigned the defendant, arraigned the defense, stampeded their tactics, denounced Annandale's manner, which he declared to be that of a hardened criminal, and pictured him as a jealous husband who, in accordance with a plot long premeditated, had first lured his victim to his house, then following him thence had murdered him in the darkness, but who now swore that he was drunk and remembered nothing. "Assuming that he was drunk," Peacock shouted, "his intoxication was a feigned disguise, assumed for the purpose and legally an aggravation of his dastard crime."

Beneath, in the unlovely street, an organ was tossing a jig. The jolts of it mounted to the court, fusing with Peacock's voice, adding their vulgarity to his own, and it was to the wretchedness of them that he said at last: "My duty is done."

He had scored points by the dozen. In as many seconds Orr had their heads off by half.

"Harris, gentlemen, is the rock of the People's case. His hand fashioned it. Without him it crumbles. Let me array for you Harris against Harris."

Leisurely Orr began, showing the man's hand for what it was, not dirty and disreputable merely, but discredited.

"Apart from that hand where is the promised evidence? Where is it? Where is that evidence? Gentlemen, not a bit of evidence have you had, not a molecule, not a minim, not a mite. At best or at worst any evidence producible against this defendant would be circumstantial. In telling you the value of such testimony the District Attorney has been good enough to leave it to me to explain that testimony of this character must, to be conclusive, exclude every other reasonable hypothesis. The District Attorney has further told you that circumstances cannot lie. Of all his statements that one and that one alone is correct. Circumstances cannot lie. But witnesses can. It is from them that circumstances are obtained. And though they furnish a million circumstances, what are these circumstances worth if they themselves are unsound? How unsound that reptile Harris is, you have, I believe, been enabled to judge. But even otherwise, even though the testimony of that saurian seem to you probable, I may remind you that the most probable things often prove false, for the reason that if they were exempt from falsity they would cease to be probable; they would be certain.

"Now what certainty has the District Attorney brought you? Instead of excluding every other reasonable hypothesis, he has opened the door to a dozen hypotheses infinitely more reasonable than his own. Except that the obligatory instrument does not appear to have been found, he has adduced nothing to show that the deceased did not commit suicide. He has adduced nothing to show that he was not robbed. The caretaker has testified that he was away from the park ten or fifteen minutes. The policeman who returned with him has testified that when he got there the gate was open. In the interim anyone may have entered, gone through the suicide, bagged his pistol for further booty and away.

"No, the District Attorney has not excluded these hypotheses, he has confined himself to picturing this defendant as a husband jealous of the deceased. But assuming that he was, how many other husbands may not have been jealous of him also? The bullet in evidence, the bullet extracted from the brain of the deceased, is one which, from a calculation of its lands and grooves, may or may not have come from a thirty-two calibre pistol. Anyway a thirty-two calibre pistol is among the exhibits. But how many more such pistols are there in this great city? The ownership of one is not a proof of crime. Nor is the fact that the body of the deceased was found in front of this defendant's residence proof either. On the contrary. The park

wherein it lay is a parallelogram, and a body in it would be practically in front of every other house in the square. How many jealous husbands reside in these houses I am not competent to say, but I am competent to tell you that the prosecution might just as well have arraigned any other resident there as this defendant; yes, and better, were it not for Harris."

Orr paused. "Reptile," he cried. "Knave, fraud, thief, liar——"

But the Court admonished him that his time was up. Without a murmur, in the middle of a sentence, he sat down. It was another point that he had scored.

"Gentlemen——"

The Recorder's charge to the jury followed, a charge clear, undeclamatory, without literature or bias, in which they were instructed regarding the law and left to determine the facts.

The jury filed out. The Recorder evaporated. Annandale sauntered away. Into adjacent corridors the great room emptied itself.

Orr, stationing associates on guard, went over to Sylvia, urging her to go.

But Sylvia refused at first to budge. The jury, she declared, would be back in five minutes.

"It may be five hours," said Orr. "You had far better go home. No? Well then I will take you to my offices and have something brought in."

"Is it far?" Sylvia warily asked. But presently she assented, stipulating however that Annandale should be brought there the moment he was freed.

Orr tossed his head. "That may not be for years, until after an appeal. I have not an idea what the jury will do. But I know one thing: the last of the lot, the twelfth, looked at me during my summing up with something that was a cross between a sneer and a scowl."

"Yes," Mrs. Waldron interjected, "I noticed him. But it seemed to me that he was not listening. It seemed to me that he was in pain. But do, Sylvia, let us go. It is cruel of you. I am starving."

In Orr's neighborly offices shortly the lady was fed. Sylvia too ate something. Orr himself would have bolted a bite, but he had to hurry away, though promising as he did so everything that Sylvia asked, promising to stand on his head if she wished it.

Once back in the court he found it still empty. In the corridors reporters and idlers lounged, speculating on the verdict, prophesying that the deliberations of the jury would be brief. But time limped. An hour passed, two hours, three. Enervated and empty Orr went down and out to a little restaurant across the street. Presently it was reported that the jury were coming in. Orr hurried back, but however he hurried, he was late. The court had refilled. As he entered he heard someone say:

"Not guilty."

Abruptly the room hummed like a wasps' nest. There were raps for order, commands for silence, threatened punishments for contempt.

The hubbub subsided, the Recorder thanked and dismissed the jury. He turned to Peacock. "Are there any further charges against the prisoner?"

"There are none, Your Honor."

The Recorder nodded at Annandale. "You are discharged."

Orr tried to get at him. But at that moment the crowd interfered. In making a circuit to reach Annandale, he found himself among the departing jury. They had all left the box, all save the twelfth, who apparently had stumbled.

About them reporters circled. The foreman was relating that they had been practically unanimous for conviction, but that one of them, the twelfth, had insisted so obstinately on the poverty of the evidence that with him finally they had voted to acquit.

"But where is he?" the foreman interrupted himself to ask. "Where is the twelfth juror? Where is Durand?"

Then only was it seen that he was still in the box, crouching there, his face ashen where it was not violet, a hand held to his side.

In a moment he was surrounded. To those nearest he looked and gasped.

"Give him some brandy," a reporter suggested. But now into the little group Peacock had forced his way. Orr edged nearer.

The juror gasped again. "I am dying," he groaned. "It is my heart. Send for a priest. I killed him. I am the man."

Skeptically Peacock sniffed. "You killed whom?"

"He is delirious," the reporter exclaimed.

"I killed him," Durand repeated.

"But whom? And why?" Peacock, bending a bit, impressed in spite of himself, inquired.

Slowly, laboriously, painfully at that, Durand from a pocket drew a picture.

"Curse him," he muttered. "There he is. He disgraced my *perle*, my daughter Marie, but she wrote me where to find him and I did; I found him in the park and I shot him there, through the head, through the h-head," he stammered and clutched at his heart.

From his hand the picture had slipped. Orr edged closer, stooped for it, recovered it, then in heightening wonder stared. The picture was a colored photograph that displayed the chiseled features, wonderful eyes and thin black mustache of one whom he had known. Above it was written "Marie's Husband."

"It is Loftus," he exclaimed.

Peacock wheeled. "Loftus," he cried. Instantly to question further, he turned to the juror again.

But even as he turned he saw that the trial was over. Spasmodically the man's mouth had twitched, his head had fallen; before a higher court he had gone.

Peacock, the marvel of it upon him, turned anew to Orr. Foes while the battle was raging, the two men now were like the commandants of opposing

forces who, the conflict ended, meet and embrace.

Peacock rubbed his eyes. "What this confession means, Orr, you as well as I appreciate." Instinctively his voice had sunk into that undertone which Death, when it comes, exacts. "Yes," he continued, "Annandale is not merely acquitted, he is cleared. For that, believe me, I am glad. As for Loftus, he got from that dead father only what he deserved."

To this Orr, about whom the marvel of it all still also clung, assented. "Justice," he replied, "is rarely human, but sometimes it is divine."

He would have said more perhaps, but Annandale was approaching. Obviously the latter was as yet wholly unaware of this new climax to his case. He was looking doubtfully around.

"I can't find my hat," he announced. Then at once, detecting the unusual in the attitude of those that stood about, his eyes followed theirs to the box from which court officers, long trained to the lugubrious, swiftly and silently were removing the corpse.

A keeper appeared. In his hand was the hat. Annandale took it, his eyes still following the body that was being removed.

"There," said Orr abruptly, "there is the man that killed Loftus. But come," he added. "Sylvia is waiting. Good-bye, Peacock. We have both had a lesson in presumptive proof."

Astonishment lifted Annandale visibly like a flash. "What!" he exclaimed. "What! What's all this?"

Then Orr, a hand on his arm, led him away, and as they passed from the General Sessions, told him what had occurred.

CHAPTER X

THE VERDICT

IN the days of the Doges there was a Gold Book in which the First Families of Venice shone. In New York there is also a Gold Book, unprinted but otherwise familiar. The names that appear there have earned the cataloguing not from medieval prowess, but from money's more modish might.

At the Metropolitan Opera House, two years and a fraction after the trial, the Gold Bookers were on view—men who could have married the Adriatic, dowered her too, whose signatures were potenter than kings. There also were women fairer than the young empresses of old Rome, maidens in thousand-dollar frocks, matrons coroneted and tiaraed. On the grand tier they sat, a family-party air about them, nodding to each other, exhaling orris, talking animatedly about nothing at all. Into their boxes young men strolled, lolled awhile, sauntered away.

In one of these boxes was Sylvia, looking like an angel, only, of course, much better dressed. Behind her was Annandale. They were quite an old couple. They had been married fully a year. In the box with them was Orr.

On the stage a festival was in progress, a festival for ear and eye, the apogee of Italian art, a production of "Aïda." A quarter of a century and more ago when that opera was first given in Cairo, there was an accompanying splendor more lavish than it, or any other opera, has had since. But it was difficult to fancy that even then there was a better cast. Before the tenor had completed the opening romanza he had enthralled the house. Good-looking, as tenors should be, stout as tenors are, he suggested Mario resurrected and returned.

"Celeste Aïda!" he sang, and it was celestial. Then at once Amneris, enacted by a debutante, appeared and the house was treated to what it had not had since Scalchi was in her prime, a voice with a conservatory in the

upper register, a cavern in the lower and, strewn between, rich loops of light, of opals, flowers, kisses and stars.

Princess she was and looked, yet, despite the glory of her raiment, rather a princess in a drawing-room than the daughter of a Pharaoh in a Memphian crypt. She seemed pleased, sure of her charm, and she pleased and charmed at sight. The house, the most apathetic—save Covent Garden—in the world, and, musically, the most ignorant as well, rose to her.

Sylvia turned to Orr. In his gloved hand was a program. "What a dear!" she murmured. "Who is she?"

Orr, before answering, looked at Annandale. The latter's eyes were on the roof. He may have been drinking the song, unconscious of the singer. But it is more probable that his thoughts were elsewhere, though hardly in the Tombs, where, during his relatively brief sojourn, he had lived at the relatively reasonable rate of a hundred dollars a day.

"A debutante," Orr answered. "She is billed as Dellarandi."

The curtain fell. The box was invaded. Men indebted to Mrs. Annandale for dinner, or who hoped to be, dropped in. Orr got up and went out.

The second act began. There was an alternating chorus. During it Amneris sat mirroring her beauty in a glass. Presently her voice mounted, mounting as mounts a bird and higher. She was joining in the incomparable duo that ensues. It passed. A march, blown from Egyptian trumpets, followed, preluding the dance of priestesses which precedes the tenor's return. As that progressed the leader of the orchestra shook like an epileptic. From his own musicians, from those on the stage, from chorus and singers, he drew wave after wave of melody, a full sea of transcendent accords that bathed Sylvia with harmony, filtered through her, penetrating blissfully from fingertips to spine.

Delightedly she turned to Annandale. The visitors had gone. Orr was entering. In his bulldog face was an expression vatic and amused.

"Yes," he resumed, seating himself at Sylvia's side, "she is billed as Dellarandi, but I knew her as Marie Leroy."

Sylvia started, her lips half parted, her eyes dilated with surprise.

Annandale bent forward. "What is it?" he asked.

"Amneris, the contralto. Do you know who she is?"

"I know she is a devilish pretty woman. What about her?"

"She is the girl whose father was the twelfth juror in your case."

Annandale, who had been standing, literally dropped with astonishment in a chair. But Sylvia was insatiable. She could not ask enough, she could not get the answers quickly enough in reply. Orr, however, knew very little, odds and ends merely that he gathered in the lobby, summarily that the girl had married Tambourini, the music teacher, and was regarded as destined to be one of the great queens of song.

So interested were all three that the third act was barely noticed. It took the melting beauty of the final duo to distract them from the debutante. But the witchery of that aria would distract a moribund. It was with the bewildering loveliness of it in their ears that they moved out from the box.

"Terra addio!" Orr repeated from it as they descended the stair.

"No, not addio," said Sylvia; "that poor girl may have said farewell to many hopes, but there are other and better ones for her now. I feel that she must have suffered terribly, and because of that suffering we should acquit her of what she did."

"That is the verdict, is it?" said Orr.

"That is my verdict," Sylvia answered. Then touching Annandale's arm she looked up at him and added, "It is yours, too, dear, is it not?"

THE END.

PUBLISHERS' NOTE

The publishers beg leave to state that The Perfume of Eros, in serial form, was entitled The Yellow Fay.

Transcriber's Note:

Punctuation has been standardised. Changes have been made to the original publication as follows:

Page 40
sometimes with arias from "Aida." *changed to*
sometimes with arias from "[Aïda](#)."

Page 131
on looking back, her realized that *changed to*
on looking back, [he](#) realized that

Page 150
Had Fanny asked him to made *changed to*
Had Fanny asked him to [make](#)

Page 171
means are suppose to carry *changed to*
means are [supposed](#) to carry

*** END OF THE PROJECT GUTENBERG EBOOK THE PERFUME OF
EROS: A FIFTH AVENUE INCIDENT ***

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